REFERENCE

Cookie Compliance Digest

Every rule a consent banner has to satisfy: 261 documents across 66 jurisdictions as of 19 September 2026, updated 27 October 2026, each with a practitioner takeaway.

80	70	24	53	24
LEGISLATION	REGULATOR GUIDANCE	COURT DECISIONS	ENFORCEMENT ACTIONS	STANDARDS

10
PROPOSALS

Reading aid, not legal advice. Every entry carries a numbered source that resolves to the primary page at the end.

How to read this

Each entry states what the document establishes, with the operative article or section, who it binds, and what to do about it, followed by the key figures: fine amounts, deadlines, application dates. Depth follows the regimes a European consent platform meets daily: the EU and its member states, the United Kingdom, Switzerland and the United States in full; one entry per operative rule elsewhere. Standards and industry frameworks have their own group, each with a sentence on legal status, since a standard is not law but regulators and courts refer to them.

Status is as of 19 September 2026, updated 27 October 2026. Proposals and consultations move; an entry says so where it applies from a future date, is proposed or is under appeal. Where a primary page could not be reached and the figures rest on a secondary source, the entry is marked. Entries are grouped by region, newest first within each group. The number in brackets is the source number; the list at the end gives the URL for every document.

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European Union

32 documents, newest first.

Council mandate on the Digital Omnibus, 2025/0360(COD), Council document 14756/26: cookie rules kept in ePrivacy Article 5(3)

[1] · 21 October 2026 EU PROPOSAL PROPOSED ANALYTICS EXEMPTION CONSENT BROWSER SIGNALS

The Council's negotiating position, agreed in Coreper on 21 October 2026, deletes the proposed GDPR Articles 88a and 88b and rewrites Article 5(3) of the ePrivacy Directive instead: storing or reading information on a device still needs consent to the GDPR standard, unless solely related to and strictly necessary for one of six purposes, namely transmission, a service the user explicitly requested, anonymous aggregated first-party audience measurement, media audience measurement under Article 24 of the European Media Freedom Act, security, and measuring contextual advertising without profiling. Refusal must take a single click, and after a refusal no new request for the same purpose may be made for at least four months. The browser-signal duty is gone, GDPR supervisory authorities would enforce the rule, and Member States would apply it 24 months after adoption. A negotiating text, not law: trilogues start once the Parliament has its position.

EDPB work programme 2026-2027 (consent or pay guidelines in preparation)

[2] · 12 February 2026 EU REGULATOR GUIDANCE CONSENT OR PAY CONSENT

The work programme adopted at the EDPB's February 2026 plenary and announced on 12 February 2026 lists guidelines on consent or pay among the guidance the Board will deliver in the 2026-2027 cycle; the programme states no scope, but the expectation is that they extend the reasoning of Opinion 08/2024 beyond large online platforms. It binds no one and contains no rule, but it tells publishers running paid ad-free tiers that a general EDPB position covering their model is coming. Keep any consent or pay implementation aligned with Opinion 08/2024 now, including a free alternative with less intrusive advertising where feasible, and plan for a review when the guidelines are published for consultation.

EDPB-EDPS Joint Opinion 2/2026 on the Digital Omnibus proposal

[3] · 10 February 2026 EU REGULATOR GUIDANCE BROWSER SIGNALS ANALYTICS EXEMPTION CONSENT

The joint opinion supports a regulatory answer to consent fatigue but warns that moving the terminal equipment rules for personal data into the GDPR while non-personal data stays under the ePrivacy Directive splits one rule across two instruments, creates legal uncertainty and must not lower protection; it welcomes the six-month bar on repeat requests after a refusal in proposed Article 88a(4) and strongly supporting machine-readable preference signals in Article 88b. It asks that the Article 88a(3) exemptions be narrow: audience measurement limited to aggregated data not combined across services, and any contextual advertising exemption clearly delimited. It objects strongly to the proposed narrowing of the definition of personal data and to delegating that definition to Commission implementing acts. It binds no one, but it signals how supervisory authorities will read the amended rules if adopted.

EDPB Recommendations 2/2025 on the legal basis for requiring the creation of user accounts on e-commerce websites

[4] · 3 December 2025 EU REGULATOR GUIDANCE CONSENT DARK PATTERNS OTHER

Adopted on 3 December 2025 for a public consultation that closed on 12 February 2026, the recommendations find that a mandatory account for a one-off purchase is unlikely to pass the necessity test under Article 6(1)(b) (paragraph 23), that Article 6(1)(c) applies only exceptionally (paragraph 47), and that order tracking, loyalty, future purchases and fraud prevention do not meet the Article 6(1)(f) necessity and balancing tests (paragraphs 58 to 75). Consent is not available for a compulsory step, and a guest checkout beside voluntary registration is the most efficient lawful design (paragraph 89). They address e-commerce operators. Remove forced registration from checkout and keep account features opt-in.

Digital Omnibus proposal, COM(2025) 837, 2025/0360(COD): new GDPR Articles 88a and 88b on terminal equipment and machine-readable consent signals

[5] · 19 November 2025 EU PROPOSAL PROPOSED BROWSER SIGNALS ANALYTICS EXEMPTION CONSENT

The proposal moves the rules on storing and accessing personal data on terminal equipment from Article 5(3) ePrivacy into a new GDPR Article 88a, which keeps consent as the default, exempts transmission, requested services, aggregated first-party audience measurement and security, and bars a fresh consent request for the same purpose for at least six months after a refusal. A new Article 88b obliges controllers to honour automated, machine-readable consent and refusal signals once standards exist, applying from 24 months after entry into force, and requires browser providers other than SMEs to offer the feature from 48 months after entry into force. The Council's negotiating mandate of 21 October 2026 deletes both articles and keeps the rule in the ePrivacy Directive (see the separate entry); the Parliament has not yet adopted its position, so trilogues have not started.

CJEU, Case C-654/23, Inteligo Media SA v ANSPDCP (soft opt-in and free accounts)

[6] · 13 November 2025 EU COURT DECISION EMAIL MARKETING CONSENT

The Court held that an email address collected when a user opens a free account giving access to extra articles and a daily newsletter, on a site whose model steers users to paid subscriptions, is obtained in the context of the sale of a product or service within Article 13(2) ePrivacy, so the newsletter promoting the operator's own similar services may be sent under the soft opt-in provided an opt-out was offered at collection and in every message. Where Article 13(2) governs the communication, the Article 6(1) GDPR conditions do not apply in addition. The case arose from a 9,000 euro Romanian fine. Map freemium sign-ups to the soft opt-in.

EDPB and European Commission joint guidelines on the interplay between the Digital Markets Act and the GDPR (draft for consultation)

[7] · 9 October 2025 EU REGULATOR GUIDANCE PROPOSED CONSENT CONSENT OR PAY OTHER

The draft guidelines, endorsed by the EDPB and the Commission on 9 October 2025 and put to consultation until 4 December 2025, explain how a gatekeeper satisfies both the specific choice requirement of Article 5(2) DMA and the GDPR consent conditions when it combines or cross-uses personal data across core platform services, and cover data portability, app distribution and messaging interoperability. They address gatekeepers, with indirect effect on the advertisers and publishers that feed data into gatekeeper advertising systems. Use them to understand the consent flows that gatekeeper products will impose on your integrations. The final adopted version had not been located as of September 2026.

Digital Fairness Act initiative (dark patterns, addictive design, consent fatigue)

[8] · 17 July 2025 EU PROPOSAL PROPOSED DARK PATTERNS CONSENT

The initiative follows the Commission's fitness check of EU consumer law and targets dark patterns, addictive design, unfair personalisation, influencer marketing and subscription cancellation, with decision fatigue from complex cookie and tracking choices cited as a pattern to address. A public consultation ran from 17 July to 24 October 2025, and the Commission work programme schedules the legislative proposal for the fourth quarter of 2026. As of September 2026 no proposal has been tabled and nothing binds anyone. Expect a consumer-law layer on top of Article 25 DSA and the GDPR for banner design, and audit interfaces now against the EDPB deceptive design categories.

European Commission non-compliance decision against Meta under Article 5(2) DMA (consent or pay model), fine of 200 million euro

[9] · 23 April 2025 EU ENFORCEMENT CONSENT OR PAY ENFORCEMENT CONSENT

The Commission found that Meta's binary choice between consenting to the combination of personal data for personalised advertising and paying for an ad-free subscription, introduced in November 2023, did not give users the specific choice of a service using less personal data that Article 5(2) DMA requires, and fined Meta 200 million euro for the period from March 2024, when DMA obligations became binding, to November 2024, when a revised model was introduced. Apple was fined 500 million euro in the same package. It binds only Meta, but it is the first EU-level enforcement of consent or pay. Publishers copying the model should offer a less data-intensive free option.

Proposal for an ePrivacy Regulation, COM(2017) 10, 2017/0003(COD)

[10] · 11 February 2025 EU PROPOSAL WITHDRAWN CONSENT BROWSER SIGNALS OTHER

Tabled on 10 January 2017 to replace Directive 2002/58/EC with a directly applicable regulation on cookies, browser settings and direct marketing, the proposal reached a Council mandate on 10 February 2021 but never a trilogue agreement. The Commission's 2025 work programme of 11 February 2025 announced its withdrawal as outdated and without foreseeable agreement, the College approved the withdrawal on 16 July 2025, and it was published in the Official Journal on 6 October 2025 as C/2025/5423. It never bound anyone. The ePrivacy Directive remains the operative text and the Digital Omnibus of 19 November 2025 is the successor reform vehicle for terminal equipment rules.

EDPB Guidelines 2/2023 on the technical scope of Article 5(3) of the ePrivacy Directive, version 2.0

[11] · 7 October 2024 EU REGULATOR GUIDANCE PIXELS WIRETAP STRICTLY NECESSARY CONSENT

The guidelines set three criteria for Article 5(3): information, whether personal or not; terminal equipment of a user, which requires a connection to a public communications network; and storage of, or gaining access to, that information. Paragraphs 47 to 63 apply them to URL and pixel tracking, local processing whose output is sent to a third party, tracking based on IP address alone, IoT reporting and unique identifiers, and find that each falls within Article 5(3) where the instruction to send information comes from code the entity distributed or, for IP-only tracking, where the address originates from the user's terminal equipment. Treat server-side tagging, link decoration, fingerprinting and pixel calls as consent events unless an exemption applies. Version 1.0 of 14 November 2023 is superseded.

EDPB Opinion 08/2024 on valid consent in the context of consent or pay models implemented by large online platforms

[12] · 17 April 2024 EU REGULATOR GUIDANCE CONSENT OR PAY CONSENT COOKIE WALLS

Requested by the Dutch, Norwegian and Hamburg authorities, the opinion finds that in most cases a large online platform offering only a choice between behavioural advertising and a fee will not obtain freely given consent, and that platforms should consider an equivalent alternative without a fee, in particular a free version with advertising that processes less or no personal data (paragraphs 73 to 77). Any fee must not inhibit free choice (paragraph 85), and imbalance of power, lock-in and network effects weigh against validity (paragraphs 99 to 112). Authorities apply its reasoning to publishers. Model any paid alternative against the free, less intrusive option; general EDPB guidelines are in preparation.

CJEU, Case C-604/22, IAB Europe v Gegevensbeschermingsautoriteit

[13] · 7 March 2024 EU COURT DECISION TCF CONSENT OTHER

The Court held that the TC String generated under the Transparency and Consent Framework is personal data within Article 4(1) GDPR, because combined with an identifier such as an IP address it allows the user to be identified, and that IAB Europe is a joint controller with its members for the recording of users' consent preferences in the TC String, though not for the later processing by participants unless it influences its purposes and means. It binds the framework operator and every publisher and vendor using the TCF. Treat consent strings as personal data in retention, security and rights handling, and run the current TCF version.

Digital Services Act, Regulation (EU) 2022/2065, Article 25 (dark patterns), Article 26 (advertising transparency) and Article 28 (minors)

[14] · 17 February 2024 EU LEGISLATION DARK PATTERNS CHILDREN OTHER

Article 25(1) prohibits online platforms from designing or operating interfaces that deceive or manipulate users or materially distort their ability to make free and informed decisions, with Article 25(3) naming repeated choice prompts and prominence tricks as examples and Article 25(2) carving out practices covered by the GDPR or the Unfair Commercial Practices Directive. Article 26 requires each advertisement to show that it is an ad, who paid for it and the main targeting parameters, and bans ads profiled on special-category data. Article 28(2) bans profiling-based ads where the platform is reasonably certain the user is a minor. Applies from 17 February 2024; fines reach 6 per cent of turnover.

EDPB letter on the Commission's draft principles for a voluntary cookie pledge

[15] · 19 December 2023 EU REGULATOR GUIDANCE HISTORICAL CONSENT OR PAY CONSENT OTHER

The letter gives the Board's feedback on the Commission's draft cookie pledge principles and records that a voluntary pledge cannot be used to circumvent legal obligations, and that the validity of consent under Article 5(3) ePrivacy, Article 4(11) and Article 7 GDPR cannot be assessed in the abstract: whether a paid alternative to tracking secures free consent depends on whether a less intrusive alternative, such as contextual advertising, is also offered. It addressed the Commission, not operators. Practitioners meet it as one of the reasons the pledge is understood to have stalled and as an early statement of positions later formalised in Opinion 08/2024. Treat it as background only; the operative EDPB positions are in Opinion 08/2024 and the Cookie Banner Taskforce report.

European Commission cookie pledge initiative (draft pledging principles)

[16] · 19 December 2023 EU PROPOSAL HISTORICAL CONSENT CONSENT OR PAY STRICTLY NECESSARY

Announced on 28 March 2023 and developed through round tables and working groups, the pledge set out voluntary principles for signatories: no consent request for strictly necessary cookies, upfront disclosure that content is financed by advertising, clear presentation of the business model and the choices, a less intrusive advertising alternative, fewer repeat consent requests per tracker, no further consent requests after a business model choice, and a one-year non-solicitation period after a refusal. Draft principles were presented on 19 December 2023, to be finalised in January 2024 and put to the Consumer Summit of April 2024, but no pledge was ever signed: the Commission closed the project on 8 November 2024 with a summary and three annexes, including best practice principles and the EDPB opinion. Its ideas resurface in the Digital Omnibus six-month rule.

CJEU, Case C-252/21, Meta Platforms and Others v Bundeskartellamt

[17] · 4 July 2023 EU COURT DECISION CONSENT CONSENT OR PAY HEALTH DATA

The Grand Chamber held that a competition authority may examine GDPR compliance when assessing abuse of dominance, provided it cooperates with the supervisory authorities; that collecting data from other group services and third-party sites is necessary for the contract under Article 6(1)(b) only where it is objectively indispensable to a purpose integral to the contract, and can rest on Article 6(1)(f) only where the interest was disclosed to users, the processing is strictly necessary and the balancing favours the controller; and that a dominant position does not by itself invalidate consent but is an important factor in judging whether it was freely given, with the burden on the operator. Visiting a website revealing sensitive characteristics does not make that data manifestly public. Treat contract and legitimate interest as hard to sustain for off-site tracking data used in ad personalisation.

Digital Markets Act, Regulation (EU) 2022/1925, Article 5(2) (consent for combining and cross-using personal data)

[18] · 2 May 2023 EU LEGISLATION CONSENT CONSENT OR PAY ENFORCEMENT

Article 5(2) prohibits a gatekeeper from processing third-party data for advertising through its core platform services, combining personal data across its services or with third-party data, cross-using data between services, or signing users in to other services to combine data, unless the user has been presented with a specific choice and has given GDPR-standard consent. A refused or withdrawn consent may be asked for again at most once a year. The obligation binds each designated gatekeeper six months after its designation, which for the first six gatekeepers meant 6 March 2024, with fines up to 10 per cent of worldwide turnover and 20 per cent for repeat infringements. Publishers using gatekeeper advertising products should expect the gatekeeper to surface the consent moment and align their tag configuration with it.

EDPB Guidelines 03/2022 on deceptive design patterns in social media platform interfaces, version 2.0

[19] · 14 February 2023 EU REGULATOR GUIDANCE DARK PATTERNS CONSENT REJECT BUTTON

The guidelines name six families of deceptive design pattern, overloading, skipping, stirring, obstructing, fickle and left in the dark, and assess each against Article 5(1)(a) fairness and transparency, Article 12 transparency, Article 25 data protection by design and default, and the Articles 4(11) and 7 consent conditions. They are written for social media providers but the assessment method transfers to any consent interface, and supervisory authorities cite them in cookie banner decisions. Use the pattern catalogue as an audit list for banner copy, colour contrast, click depth and withdrawal paths, and record the review under Article 5(2) accountability.

EDPB Report of the work undertaken by the Cookie Banner Taskforce

[20] · 17 January 2023 EU REGULATOR GUIDANCE REJECT BUTTON DARK PATTERNS STRICTLY NECESSARY

The report records the positions supervisory authorities share on the noyb banner complaints: a first layer with an accept button but no reject option is non-compliant (paragraphs 6 to 8); pre-ticked boxes do not create consent (paragraphs 9 to 10); a reject option hidden as a small link or outside the banner is insufficient (paragraphs 11 to 14); unreadable button contrast is manifestly misleading (paragraph 18); legitimate interest cannot ground a cookie under Article 5(3) (paragraphs 20 to 25); operators must prove and keep updated the list of essential cookies (paragraph 28); and withdrawal must be as easy as consent (paragraph 34). It sets the common enforcement baseline.

noyb, 422 formal GDPR complaints filed against cookie banners after the warning period

[21] · 10 August 2021 EU ENFORCEMENT HISTORICAL DARK PATTERNS REJECT BUTTON ENFORCEMENT SECONDARY SOURCE

After the May 2021 warning letters, noyb reported that 42 percent of the flagged violations were remedied within 30 days but 82 percent of companies had not fully stopped violating the GDPR, and filed 422 formal complaints with ten European authorities, among them 36 major sites that had resisted any change, targeting missing reject buttons, pre-ticked boxes, deceptive colours, absent withdrawal options and unsupported legitimate-interest claims. Roughly half went to the Austrian DPA. Decisions from these complaints continued to arrive in 2025 and 2026, so a banner that passed in 2021 may still be the subject of a pending case.

noyb, cookie banner campaign launch: more than 500 draft complaints to websites using unlawful banners

[22] · 31 May 2021 EU ENFORCEMENT HISTORICAL DARK PATTERNS REJECT BUTTON ENFORCEMENT SECONDARY SOURCE

noyb sent draft complaints to more than 500 websites across 33 countries, generated with an automated scanner, after finding that 81 percent of scanned banners offered no reject option on the first layer, 73 percent used deceptive colours and contrasts, and 90 percent offered no simple way to withdraw consent, and announced up to 10,000 complaints over 2021. Recipients were given a month to fix their banners before formal complaints. The campaign, later routed through ten data protection authorities, is the origin of many of the national decisions on this page, including the Austrian, Swedish and Belgian ones.

EDPB Guidelines 8/2020 on the targeting of social media users, version 2.0

[23] · 13 April 2021 EU REGULATOR GUIDANCE PIXELS WIRETAP CONSENT OTHER

The guidelines apply Wirtschaftsakademie and Fashion ID to advertising: a targeter that embeds a social media pixel or plug-in jointly determines the purpose of the collection and transmission with the platform and is a joint controller for those operations, though not for what the platform does afterwards. Where targeting relies on tracking across websites, Article 5(3) consent is the only available basis, legitimate interest is excluded, and the parties need an Article 26 arrangement. They set the standard applied to social media providers and to every advertiser or publisher that installs their tags. Tie every pixel to a consent purpose, document the joint controllership split, and cover the transmission in the privacy notice.

CJEU, Case C-61/19, Orange Romania SA v ANSPDCP

[24] · 11 November 2020 EU COURT DECISION CONSENT DARK PATTERNS

The Court held under Articles 4(11) and 6(1)(a) GDPR (and the equivalent Directive 95/46 provisions) that the controller must prove the data subject consented by active behaviour after receiving information in clear and plain language, and that a contract clause recording consent does not prove it where the controller pre-ticked the box, where the terms could mislead the customer about being able to contract without consenting, or where refusing required completing an extra form. The case concerned identity documents in a telecoms contract, but the reasoning applies to any consent flow. Keep the refusal path no longer than the acceptance path and retain evidence of the affirmative act.

EDPB Guidelines 05/2020 on consent under Regulation 2016/679

[25] · 4 May 2020 EU REGULATOR GUIDANCE CONSENT COOKIE WALLS REJECT BUTTON

The guidelines spell out the Article 4(11) and Article 7 conditions and add two positions that shape banners directly: access to a website cannot be conditioned on accepting cookies (a cookie wall does not produce freely given consent, paragraph 39), and scrolling or swiping through a page is not a clear affirmative action (paragraph 86). They also require granular purposes, a documented record, and withdrawal as easy as giving consent. They set the standard the authorities apply to every controller relying on consent, including for the GDPR processing that follows a cookie. Use them as the checklist for banner wording, button design and consent logs. They replace Article 29 Working Party Guidelines WP259 on consent.

CJEU, Case C-673/17, Bundesverband der Verbraucherzentralen v Planet49 GmbH

[26] · 1 October 2019 EU COURT DECISION CONSENT REJECT BUTTON

The Court held that consent under Article 5(3) ePrivacy, read with Article 2(h) of Directive 95/46 and Article 4(11) GDPR, is not validly given by a pre-ticked checkbox the user must deselect, and that this applies whether or not the information stored or accessed is personal data. It also held that the information the operator must give includes the duration of the cookies and whether third parties may have access to them. The ruling binds every operator setting cookies on EU users' devices and is the source of the active opt-in rule. Check that no toggle is preset to on and that the banner discloses lifetimes and third-party recipients.

CJEU, Case C-40/17, Fashion ID GmbH & Co. KG v Verbraucherzentrale NRW eV

[27] · 29 July 2019 EU COURT DECISION PIXELS WIRETAP CONSENT OTHER

The Court held that a website operator embedding a third-party social plug-in that causes the visitor's browser to send personal data to the plug-in provider is a joint controller with that provider for the collection and disclosure by transmission, but not for the provider's subsequent processing. The operator must itself provide the information due at collection and, where consent is the basis, obtain it for the collection and transmission it controls. It binds every site that embeds a third-party pixel, plug-in or script that fires before consent. Gate every third-party tag behind consent, name the recipient in the notice, and agree the Article 26 allocation with the vendor.

EDPB Opinion 5/2019 on the interplay between the ePrivacy Directive and the GDPR

[28] · 12 March 2019 EU REGULATOR GUIDANCE CONSENT ENFORCEMENT OTHER

The opinion holds that where the ePrivacy Directive particularises the GDPR the specific rule prevails, so where Article 5(3) requires consent for storing or accessing information on a device, no other Article 6 GDPR basis can replace it, and the later processing of the personal data collected still needs its own GDPR basis. It also confirms that the GDPR one-stop-shop and consistency mechanism do not extend to ePrivacy enforcement, which stays with the national authority each Member State designates. Adopted under Article 64(2), it states the reading the supervisory authorities apply to every operator. Expect parallel national enforcement of cookie rules without a lead authority, and never justify a tracking cookie on legitimate interest.

General Data Protection Regulation (EU) 2016/679, Articles 4(11), 6, 7 and 25 and Recital 30

[29] · 25 May 2018 EU LEGISLATION CONSENT DARK PATTERNS OTHER

Article 4(11) defines consent as freely given, specific, informed and unambiguous, shown by a statement or clear affirmative action, and Article 7 adds the burden of proof, separability, and withdrawal as easy as giving consent. Recital 30 names cookie identifiers and IP addresses as identifiers that may make a person identifiable, so tracking data is personal data and Article 6 requires a legal basis for what follows collection. Article 25 requires privacy by design and by default, applied by regulators to default banner settings. Applies from 25 May 2018 to processing in the context of an EU establishment and, under Article 3(2), to controllers elsewhere that offer goods or services to people in the Union or monitor their behaviour there (residence or citizenship alone is not the test); fines reach 20 million euro or 4 per cent of turnover.

CJEU, Case C-582/14, Patrick Breyer v Bundesrepublik Deutschland (dynamic IP addresses)

[30] · 19 October 2016 EU COURT DECISION OTHER ANALYTICS EXEMPTION

The Court held that a dynamic IP address recorded by a website operator is personal data in relation to that operator where it has legal means to obtain from the access provider the additional information needed to identify the visitor, and that national law cannot limit the legitimate interest ground so as to exclude retention of that data to keep the site working and defend it against attacks. It binds every operator logging visitor IP addresses, and Recital 30 GDPR and EDPB Guidelines 2/2023 build on it. Treat IP-based analytics, fraud checks and server logs as personal data processing with a stated legal basis and retention period.

Article 29 Working Party Opinion 04/2012 on Cookie Consent Exemption (WP 194)

[31] · 7 June 2012 EU REGULATOR GUIDANCE STRICTLY NECESSARY ANALYTICS EXEMPTION CONSENT

The Working Party reads the two exemptions in Article 5(3) of the ePrivacy Directive: Criterion A, storage or access for the sole purpose of carrying out the transmission of a communication, and Criterion B, storage or access strictly necessary for an information society service the user has explicitly requested, judged from the user's point of view rather than the provider's. Seven cookie types can qualify, most of them for the session only: user input such as a shopping basket, authentication, user-centric security, multimedia player session, load balancing, UI customisation and social plug-in content sharing for logged-in members. Social plug-in tracking, third-party advertising and first-party analytics cookies do not: first-party analytics limited to aggregated statistics with an opt-out and IP anonymisation are called a low privacy risk, but still need consent, and the opinion asked the legislator for a third exemption to cover them, which the Council's October 2026 Digital Omnibus mandate would now write into Article 5(3). Section 2.4 states the rule for a cookie with several purposes: exempt only if every one of its purposes is exempt on its own. Adopted 7 June 2012 as WP 194; it never bound anyone and the EDPB has not revisited it, but it remains the EU-level reading of the exemptions that national regulators' lists of exempt cookies follow. Classify every storage or access operation by purpose, and treat a cookie serving an exempt and a non-exempt purpose as a consent cookie in every configuration that reads it.

ePrivacy Directive 2002/58/EC as amended by Directive 2009/136/EC, Article 5(3) and Article 13

[32] · 19 December 2009 EU LEGISLATION CONSENT STRICTLY NECESSARY EMAIL MARKETING

Article 5(3) permits the storing of information, or the gaining of access to information already stored, in a user's terminal equipment only with consent given after clear and comprehensive information, with exceptions for transmission of a communication and for storage or access strictly necessary for a service explicitly requested by the user. Article 13(1) requires prior consent for automated calls, fax and email marketing, and Article 13(2) sets the soft opt-in for email marketing of own similar products to existing customers. The rules bind anyone placing cookies, pixels or scripts on EU users' devices, whatever the sender's location. Map every tag against the two exemptions and keep the consent record.

EU member states

57 documents, newest first.

EDPB, article 65 binding decision requiring the Belgian DPA to examine a noyb cookie banner complaint against VRT on the merits

[33] · 14 July 2026 BELGIUM REGULATOR GUIDANCE ENFORCEMENT DARK PATTERNS

In a dispute resolution decision adopted on 28 May 2026 under article 65(1)(a) GDPR, the EDPB rejected the Belgian DPA's dismissal, as an abuse of rights under articles 77 and 80(1), of a cookie banner complaint that noyb lodged with the Austrian DPA on behalf of an individual against the Belgian public broadcaster, and instructed the Belgian DPA as lead authority to assess the complaint on its merits and submit a new draft decision under article 60(3). The decision closes the Belgian route of dismissing NGO-backed model complaints; cross-border banner complaints will be decided on substance.

Bundesverwaltungsgericht (Austria), W171 2303402-1: ORF.at must give accept and reject buttons equal prominence

[34] · 21 May 2026 AUSTRIA COURT DECISION DARK PATTERNS REJECT BUTTON SECONDARY SOURCE

The Federal Administrative Court upheld an October 2024 DSB decision, originating in noyb's August 2021 campaign against 422 websites, that the public broadcaster's banner used deceptive design by colouring the Accept button and leaving Reject less prominent, leading to unintended consent in breach of transparency and freely given consent. ORF must redesign the banner so that both buttons receive equal prominence. This is the first Austrian court ruling on button colour and contrast; Austrian-facing sites should remove visual hierarchy between the two first-layer options.

CNIL, Deliberation 2026-042: recommendation on tracking pixels in emails

[35] · 14 April 2026 FRANCE REGULATOR GUIDANCE EMAIL MARKETING PIXELS WIRETAP CONSENT

The recommendation, adopted on 12 March 2026 and published on 14 April 2026, states that open-tracking pixels in emails require consent under article 82, with two exemptions: security measures that help authenticate the user, and measuring individual open rates for deliverability, limited to what is needed to adapt or stop sending to inactive recipients. Both exemptions cover only emails the recipient asked for or that relate to a service they requested, such as transactional messages (order confirmations, password resets, account alerts) and messages they consented to receive; pixel consent is separate from consent to receive the email itself, although one consent can cover direct marketing and the pixel purposes connected to it. Senders must clearly inform recipients about pixels and let them withdraw consent as easily as they gave it, for example through a footer link. For addresses collected before publication, senders had three months to inform recipients and give them an easy objection route. Email platforms and marketing teams should reconfigure open tracking to consent-gated operation.

CNIL, 3.5 million euro fine for transmitting loyalty-member data to a social network and for eleven cookies placed before choice

[36] · 30 December 2025 FRANCE ENFORCEMENT PIXELS WIRETAP CONSENT ENFORCEMENT

The CNIL fined an unnamed retailer 3.5 million euros for sending loyalty members' email addresses and phone numbers to a social media platform for targeted advertising since February 2018 without a valid legal basis (article 6 GDPR) and without adequate information or rights handling (articles 12 and 13), for weak password rules (article 32), for a missing impact assessment (article 35), and under article 82 because eleven consent-requiring cookies were written before any choice and were neither deleted nor stopped from being read after refusal, affecting more than 10.5 million people. Customer-matching uploads to ad platforms need their own legal basis, separate from the cookie banner.

CNIL, American Express Carte France fined 1.5 million euros for cookies placed on arrival and read after refusal

[37] · 27 November 2025 FRANCE ENFORCEMENT CONSENT ENFORCEMENT

The CNIL fined American Express Carte France 1.5 million euros under article 82 after January 2023 inspections of americanexpress.com/fr-fr showed cookies placed on arrival before any choice, advertising cookies still placed after refusal, and previously placed cookies read after consent was withdrawn. The CNIL noted that the rules were well known from its long-running action plan, and reduced the penalty because the company came into compliance during the proceedings. A mid-sized fine for a national subsidiary shows the CNIL is now enforcing beyond the largest platforms.

Autoriteit Persoonsgegevens, more than 200 websites warned over misleading cookie banners; three quarters corrected, enforcement against the rest

[38] · 11 November 2025 NETHERLANDS ENFORCEMENT DARK PATTERNS ENFORCEMENT SECONDARY SOURCE

The AP announced that, since it began structural checks in April 2025, it had warned more than 200 websites about their cookie banners, that about three quarters had already adjusted them, and that it was now taking enforcement steps against those that had not. Its position is that tracking cookies may be placed only with voluntary consent given on the basis of clear and correct information, and that the simplest way to respect users' choice is not to use tracking software at all, so no banner is needed. Organisations serving Dutch users should treat an AP warning as the last step before a formal investigation.

BfDI recognises the first consent management service under the EinwV (Consenter)

[39] · 17 October 2025 GERMANY REGULATOR GUIDANCE BROWSER SIGNALS CONSENT SECONDARY SOURCE

On 17 October 2025 the Federal Commissioner (BfDI) recognised the first service under the Einwilligungsverwaltungsverordnung, the PIMS Consenter from Law & Innovation Technology GmbH, and entered it in the public register required by section 13 EinwV. Recognition makes the section 19 EinwV duties concrete for any German digital service that chooses to integrate the service: stored end-user settings must be honoured, and users without stored settings must be told which service the provider uses and that settings can be made there. Consent platforms operating in Germany should decide whether to interoperate with recognised services and document that decision.

CNIL, Google LLC and Google Ireland fined 325 million euros for cookies at account creation and adverts inserted between Gmail emails

[40] · 1 September 2025 FRANCE ENFORCEMENT CONSENT EMAIL MARKETING ENFORCEMENT

The CNIL fined Google LLC 200 million euros and Google Ireland Limited 125 million euros for placing advertising cookies during Google account creation without valid, informed consent (article 82 of the French Data Protection Act) and for displaying adverts between emails in the Gmail Promotions and Social tabs without prior consent (article L.34-5 of the Postal and Electronic Communications Code), affecting more than 74 million accounts and 53 million users respectively. Both companies must comply within six months under a penalty of 100,000 euros per day of delay. Account sign-up flows are cookie consent flows and the same banner standard applies.

CNIL, Infinite Styles Services (SHEIN) fined 150 million euros for cookies placed without consent

[41] · 1 September 2025 FRANCE ENFORCEMENT CONSENT ENFORCEMENT

The CNIL fined SHEIN's Irish subsidiary 150 million euros under article 82 because shein.com, visited by around 12 million people in France each month, placed cookies before consent, kept reading them after refusal or withdrawal, and used two incomplete banners that omitted the advertising purpose and the third parties involved. The company fixed the site during the procedure, so no injunction was issued, but the fine stands at the upper end of the CNIL's cookie sanctions. Withdrawal must stop both writing and reading of existing cookies.

Bundesverwaltungsgericht (Austria), DerStandard pay or okay: DSB decision confirmed, consent must be granular

[42] · 18 August 2025 AUSTRIA COURT DECISION UNDER APPEAL CONSENT OR PAY CONSENT SECONDARY SOURCE

The Federal Administrative Court confirmed the DSB's 2023 finding that derstandard.at did not obtain valid consent under its pay-or-okay model (subscription priced at 9.90 euros per month) because users could only consent or refuse globally, whereas the GDPR requires the option to consent separately to distinct processing purposes; the DSB had not objected to the model as such. The court allowed an appeal to the Supreme Administrative Court on the novel question. Austrian publishers using consent-or-pay must offer per-purpose consent inside the tracked option and should expect a referral to the CJEU.

Datatilsynet and Digitaliseringsstyrelsen, joint guidance on the use of cookies and similar technologies

[43] · 15 May 2025 DENMARK REGULATOR GUIDANCE CONSENT ANALYTICS EXEMPTION

The two Danish authorities issued one guidance document, with a supplementary annex of practical advice and an accompanying podcast, covering both the cookie order and the data protection rules that often apply in parallel: the cookie order requires consent before cookies are placed, and the GDPR governs the processing that follows, including any statistics or advertising. The guidance goes through the main rules of each regime, gives practical advice and examples, and flags the typical pitfalls. Danish-facing sites should re-check banners against it, in particular the treatment of statistics cookies.

Brussels Market Court, judgment 2022/AR/292 on IAB Europe's appeal against decision 21/2022

[44] · 14 May 2025 BELGIUM COURT DECISION TCF CONSENT

Applying the CJEU's judgment in C-604/22 of 7 March 2024, the Market Court ruled with full jurisdiction that the TC String is personal data and that IAB Europe is joint controller for processing of user preferences within the TCF, confirmed the infringements and the 250,000 euro fine, but annulled the Belgian DPA's decision 21/2022 for procedural reasons and rejected the DPA's finding that IAB Europe is controller for processing occurring entirely within the OpenRTB protocol. Publishers and vendors relying on TCF signals remain individually responsible for a valid legal basis and transparency; the framework alone does not deliver compliance.

Integritetsskyddsmyndigheten (IMY), three cookie banner decisions: reprimands for Warner Music Sweden, ATG and Aller Media

[45] · 30 April 2025 SWEDEN ENFORCEMENT DARK PATTERNS CONSENT ENFORCEMENT

Investigating complaints channelled through the EDPB cookie banner taskforce, IMY reprimanded Warner Music Sweden (October 2024) for not adequately informing users of the right to withdraw consent (articles 6 and 7(3) GDPR), ATG (December 2024) for not making withdrawal as easy as consent and for misleading banner design that hindered informed and voluntary consent, and Aller Media (April 2025) for processing without a legal basis by citing legitimate interest for cookie data without a documented balancing test (article 6(1)(f)). IMY noted that the Post and Telecom Authority (PTS) alone supervises the Electronic Communications Act's cookie rules, while IMY supervises the subsequent GDPR processing. Swedish-facing sites need a documented basis for post-consent processing, not only a banner.

CNIL, Deliberation 2025-024: recommendation on mobile applications (amended version)

[46] · 8 April 2025 FRANCE REGULATOR GUIDANCE CONSENT OTHER

The recommendation, first adopted on 18 July 2024 (Deliberation 2024-061) and replaced by the amended version adopted in Deliberation 2025-024 of 27 March 2025 and published on 8 April 2025, sets the CNIL's expectations for each actor in the mobile chain (publisher, developer, SDK provider, operating system and store), including how consent for trackers and permissions must be collected in-app under article 82 and the GDPR. The 2025 amendments are targeted corrections and clarifications, shown in an annotated version, including the roles of publisher and SDK provider in one SDK example. Apps distributed in France should map SDKs against it and treat it as the yardstick for CNIL app inspections.

Autoriteit Persoonsgegevens, five cookie banner investigations closed after corrections (deceptive banners)

[47] · 8 April 2025 NETHERLANDS ENFORCEMENT REJECT BUTTON DARK PATTERNS ENFORCEMENT

The Dutch DPA reported that all five organisations it investigated in 2024, across finance, media and hospitality, broke the law through hidden reject buttons, pre-ticked boxes and cookies placed before or despite refusal, and that all five corrected their banners after its intervention. The AP restated its rules: ask permission clearly without tricks that make saying no difficult, place no tracking cookies without consent, and rely on the exemption only for strictly necessary functional cookies. It announced systematic checks of around 10,000 Dutch websites, with warnings before fines. Dutch-facing sites should expect a warning letter and a short window to fix the first layer.

Germany, Einwilligungsverwaltungsverordnung (EinwV): regulation on recognised consent management services

[48] · 1 April 2025 GERMANY LEGISLATION BROWSER SIGNALS CONSENT

The regulation (BGBl. 2025 I Nr. 32), in force since 1 April 2025 under section 26(2) TDDDG, defines the requirements a consent management service must meet to be recognised (user-friendly and competition-neutral procedures, switching, security concept, a public register under section 13) and names the recognising authority. Integration by digital service providers is voluntary (section 18(1)), but a provider that integrates a recognised service must respect the stored settings and point users to them when asking for consent (section 19), and browsers should not suppress or alter the signal (section 17). The provider stays responsible for GDPR consent validity (section 1(2)).

Verwaltungsgericht Hannover, judgment 10 A 5385/22: a reject all button on the first layer is mandatory

[49] · 19 March 2025 GERMANY COURT DECISION REJECT BUTTON DARK PATTERNS ENFORCEMENT

The administrative court upheld an order by the Lower Saxony data protection commissioner against a publisher, holding that where a banner offers Accept all it must offer an equally visible Reject all on the same layer, that repeating the banner to pressure users and highlighting the accept option violate the requirement of freely given consent, and that information on third-party partners, transfers outside the EU and revocation must be immediately visible. The judgment is the first German administrative court decision on banner design and backs supervisory orders under section 25 TDDDG. Treat nudging patterns as grounds for a binding order, not only a fine.

UODO, bulletin 03/2025: the Polish DPA's position on cookie consent and banners

[50] · 1 March 2025 POLAND REGULATOR GUIDANCE CONSENT COOKIE WALLS DARK PATTERNS

The Polish supervisory authority's March 2025 bulletin states that consent to cookies must be voluntary, informed, unambiguous and preceded by an active user action, that pre-ticked boxes are invalid, that withdrawing consent must be as easy as giving it, that cookie walls which block access to a site unless cookies are accepted are incompatible with the GDPR, and that clear pre-consent information on data, recipients and purposes is required; it relies on EDPB Guidelines 05/2020, the EDPB cookie banner task force report and the CJEU judgments in Planet49 (C-673/17) and Orange Romania (C-61/19). The bulletin applies the GDPR consent standard to banners directly and notes that not every article in it states the authority's official position.

Spain, Ley 34/2002 (LSSI), article 22.2: consent for storage devices on terminal equipment

[51] · 23 January 2025 SPAIN LEGISLATION CONSENT STRICTLY NECESSARY

Article 22.2 LSSI allows a service provider to store or access information on a recipient's terminal only after the recipient has consented on the basis of clear and complete information about the purposes, exempts storage strictly necessary for transmission or for a service the user requested, and permits consent to be expressed through appropriate browser or application settings where technically possible. It binds providers established in Spain and non-EU providers that direct their services at Spain. The consolidated text was last updated on 23 January 2025 and the AEPD enforces it as a leve infringement, which becomes grave on repeat offences within three years.

CNIL, formal notices to website publishers over misleading cookie banners

[52] · 12 December 2024 FRANCE ENFORCEMENT DARK PATTERNS REJECT BUTTON ENFORCEMENT

The CNIL served formal notices on several publishers whose banners made the refusal option smaller, paler or buried in text, repeated the accept option several times while offering refusal once in unclear wording, or left too little visual separation between the refusal link and surrounding text, giving each one month to comply. The notices restate that refusing must be as simple as accepting and that information must be clear and complete. Use the listed patterns as a design checklist: contrast, size and wording of the refuse control are now enforcement criteria in France.

Garante, provvedimento n. 670: warning and compliance order after Guardia di Finanza cookie inspections of e-commerce sites

[53] · 13 November 2024 ITALY ENFORCEMENT CONSENT ENFORCEMENT

Under a 2021 protocol, the Garante delegated online checks of a sample of e-commerce operators to the Guardia di Finanza's privacy unit; on the inspected shop the banner offered OK and No grazie but no cookie policy existed and no cookie categories were disclosed, so consent could not be specific or informed. The Garante found breaches of articles 4(11), 5, 7, 12, 13, 24 and 25 GDPR and article 122 of the Code, issued a warning under article 58(2)(b) and ordered a compliant banner with an information layer, without a fine because the operator had partly remediated. Italian sweeps target small sites and turn on documentation, not only buttons.

Germany, TDDDG section 25 (Telekommunikation-Digitale-Dienste-Datenschutz-Gesetz, formerly TTDSG): protection of privacy in terminal equipment

[54] · 14 May 2024 GERMANY LEGISLATION CONSENT STRICTLY NECESSARY

Section 25(1) TDDDG permits storing information on, or accessing information already stored in, an end user's terminal only with consent given on the basis of clear and comprehensive information, and requires that information and consent meet the GDPR standard. Section 25(2) exempts storage or access whose sole purpose is transmitting a message over a public network, or which is strictly necessary for a digital service the user has expressly requested. The provision applies to any provider of digital services reaching German users, irrespective of whether personal data is involved. The act was renamed from TTDSG to TDDDG on 14 May 2024 with the section unchanged.

AEPD, Guia sobre el uso de las cookies (May 2024 edition)

[55] · 1 May 2024 SPAIN REGULATOR GUIDANCE REJECT BUTTON CONSENT OR PAY COOKIE WALLS

The current guide applies article 22.2 LSSI together with the GDPR and LOPDGDD: a reject option must sit at the same layer and with the same visibility as accept, consent should be renewed at most every 24 months, cookie walls are lawful only with clear notice and a genuinely equivalent alternative that need not be free, and access to legally guaranteed rights cannot be blocked. A May 2024 section transposes EDPB Opinion 08/2024: large platforms will in most cases not obtain valid consent from a binary pay-or-consent choice and should consider a free alternative such as contextual advertising. It is the reference for AEPD sanction procedures in Spain.

BayLDA, press release on automated checks of cookie banners on 350 websites and 15 apps

[56] · 9 February 2024 GERMANY ENFORCEMENT REJECT BUTTON ENFORCEMENT

The Bavarian State Office for Data Protection Supervision announced that in a partly automated sweep it had checked more than 350 Bavarian websites and 15 apps, finding that almost all apps ran consent-requiring processes before any consent and that about 350 websites failed the requirement, tested by its automated banner tool, that the option to withhold consent appear on the first layer alongside Accept all. Operators were given the opportunity to respond and fix their sites, and the BayLDA said it would extend the tool to further consent platforms. Expect scripted first-layer checks from German state authorities and design banners to pass them without human review.

Oberlandesgericht Koeln, judgment 6 U 80/23: accept and reject options in a cookie banner must be equivalent

[57] · 19 January 2024 GERMANY COURT DECISION REJECT BUTTON DARK PATTERNS SECONDARY SOURCE

The OLG Koeln held that a banner offering Accept, Settings and an X labelled Accept and close in the corner on the first layer, and only Save or Accept all on the second, gave users no rejection option equivalent to the consent option on either layer, and that pairing the X with Accept and close was misleading and intransparent, so the consent is invalid under section 25 TTDSG. The claim was brought by a consumer association against a weather portal; the judgment (6 U 80/23, 19 January 2024) is not final. Site operators in Germany face civil injunctions from competitors and associations, not only regulators, for asymmetric banners; give both options the same layer and weight.

CNIL, Yahoo EMEA fined 10 million euros for ignoring cookie refusals and tying withdrawal to loss of email access

[58] · 29 December 2023 FRANCE ENFORCEMENT CONSENT COOKIE WALLS ENFORCEMENT SECONDARY SOURCE

The CNIL fined Yahoo EMEA Limited 10 million euros under article 82 because yahoo.com continued to place advertising cookies after users refused them, and because Yahoo Mail users who wanted to withdraw cookie consent were told they would lose access to their mailbox, which the CNIL treated as a consent that was not freely given. The case followed 27 complaints. Withdrawal must be possible without penalty to the core service, and a refusal must be honoured technically, not just displayed.

AEPD, press release: cookie guide updated to the EDPB deceptive design guidelines, compliance by 11 January 2024

[59] · 11 July 2023 SPAIN REGULATOR GUIDANCE SUPERSEDED REJECT BUTTON DARK PATTERNS COOKIE WALLS

The AEPD announced that its cookie guide now incorporates EDPB Guidelines 03/2022 on deceptive design: accept and reject actions must be presented in a prominent place and format, rejection cannot be harder than acceptance, access may be conditioned on consent only where an alternative access route exists (which need not be free), and personalisation chosen by the user is technical while personalisation decided by the publisher needs an accept or reject choice. Sites were given until 11 January 2024 to comply. The July 2023 text has since been replaced by the May 2024 edition of the guide.

CNIL, Criteo fined 40 million euros for retargeting without proof of consent (upheld by the Conseil d'Etat, decision no. 482872)

[60] · 15 June 2023 FRANCE ENFORCEMENT CONSENT TCF ENFORCEMENT

The CNIL fined Criteo 40 million euros for failing to demonstrate under article 7(1) GDPR that its publisher partners had collected valid consent for its tracker, for incomplete information that disclosed only personalised advertising and not the reuse of the data to configure and improve its targeting algorithms (articles 12, 13 and 15), for treating erasure requests by merely stopping personalised ads while keeping the identifiers and training on the data (article 17) and for joint-controller contracts missing required terms on rights, breach notification and impact assessments (article 26). An adtech vendor must audit partner consent, not merely contract for it: the Conseil d'Etat held that contracting the duty to partners does not relieve the controller of holding the proof. On 4 March 2026 it rejected Criteo's appeal in full, holding that pseudonymous identifiers tied to browsing data are personal data because the volume and precision of the information recouped for one identifier make at least some users identifiable without disproportionate effort.

DSK, Beschluss zur Bewertung von Pur-Abo-Modellen auf Websites

[61] · 22 March 2023 GERMANY REGULATOR GUIDANCE CONSENT OR PAY CONSENT

The German authorities accept consent-or-pay (Pur-Abo) models on websites only where the paid alternative gives fundamentally the same service at a market-standard price, consent for the tracked version meets every GDPR requirement including granular consent per materially distinct purpose, and the paid version stores or reads only what is strictly necessary for the chosen service. Blanket consent covering materially different purposes is invalid; only closely related purposes may be bundled. Publishers using Pur-Abo models in Germany should separate advertising, measurement and personalisation consents and audit the paid path for tracking; the EDPB's April 2024 opinion adds stricter conditions for large platforms.

Datatilsynet, guidance on the use of cookie walls (four criteria) following two decisions

[62] · 20 February 2023 DENMARK REGULATOR GUIDANCE COOKIE WALLS CONSENT OR PAY

Datatilsynet published four criteria for lawful cookie walls after two decisions: one publisher was found compliant because its paid alternative was substantially equivalent and reasonably priced, another non-compliant because the service offered against consent was not substantially similar to the paid one. The criteria require a reasonable alternative for visitors who refuse, a price that does not make the choice illusory, consent requested only for purposes needed to fund the free path (statistics and personalisation need separate consent), and only strictly necessary processing on the paid path. Both publishers received orders on statistical purposes.

AEPD, PS/00393/2022: Infinity Ecom fined 10,000 euros, including 5,000 euros for non-essential cookies placed without consent

[63] · 18 January 2023 SPAIN ENFORCEMENT CONSENT ENFORCEMENT

The AEPD fined an online shop 5,000 euros under article 22.2 LSSI and 5,000 euros under article 13 GDPR after finding Shopify, Klaviyo, Pinterest, Google and Meta cookies (for example _shopify_y, _gcl_au and _fbp) placed before any consent, with no working consent mechanism or granular panel and a privacy policy missing the controller's identity. The amounts are small but the reasoning is routine: named third-party cookies observed before choice are enough for a sanction. Small merchants on hosted platforms should verify that platform and plugin tags are actually gated by the banner.

CNIL, Deliberation SAN-2022-027: TikTok fined 5 million euros for a banner without an equivalent refuse option

[64] · 29 December 2022 FRANCE ENFORCEMENT REJECT BUTTON CHILDREN ENFORCEMENT SECONDARY SOURCE

The CNIL fined TikTok Information Technologies UK Limited and TikTok Technology Limited 5 million euros because, between May 2020 and June 2022, tiktok.com let users accept cookies in one click but refuse only through several clicks, and because neither the banner nor the consent tool adequately described cookie purposes, in breach of article 82. The CNIL weighed the number of French users, including minors, and its earlier public warnings on easy refusal. Sites with young audiences should expect no leniency on banner symmetry.

CNIL, Deliberation SAN-2022-023: Microsoft Ireland Operations fined 60 million euros for cookies on bing.com

[65] · 19 December 2022 FRANCE ENFORCEMENT REJECT BUTTON CONSENT ENFORCEMENT

The CNIL fined Microsoft Ireland Operations Limited 60 million euros because bing.com wrote an advertising cookie to the terminal before any consent and offered no first-layer button to refuse cookies, while acceptance took one click, in breach of article 82. An injunction required consent to be collected on arrival at bing.com before any write used for advertising fraud detection, within three months, backed by 60,000 euros per day of delay. The case confirms that a cookie used for both fraud detection and advertising still needs consent. Search engines and other high-traffic services operating in France are treated as within the CNIL's direct reach.

DSK, Orientierungshilfe fuer Anbieter:innen von Telemedien (OH Telemedien 2021), version 1.1

[66] · 5 December 2022 GERMANY REGULATOR GUIDANCE REJECT BUTTON STRICTLY NECESSARY CONSENT

The joint guidance of the German federal and state data protection authorities, first adopted in December 2021 and revised by the 104th DSK in December 2022, reads section 25 TTDSG (now TDDDG) as requiring consent for any storage or access on the terminal regardless of personal data, limits the strictly necessary exemption to functional necessity rather than economic need, and treats a first layer with accept all but no equally accessible reject as invalid consent. It rules out legitimate interest as a substitute for the section 25 standard and refuses to label reach measurement as necessary per se. German supervisory audits, including the BayLDA's, apply it.

Belgian DPA, decision 85/2022: Roularta Media Group fined 50,000 euros after the cookie sweep of 20 press sites

[67] · 25 May 2022 BELGIUM ENFORCEMENT CONSENT ENFORCEMENT DARK PATTERNS

In its first thematic investigation the Belgian DPA's Inspection Service examined the 20 most visited Belgian news sites for cookie use, consent and transparency, and fined Roularta 50,000 euros for cookies placed before consent, statistics cookies treated as exempt from consent, pre-ticked partner choices, a disclaimer for third-party cookies, deficient information, excessive cookie lifetimes and ineffective withdrawal on two of its sites, with an order to comply within three months. A parallel decision of 16 June 2022 fined Rossel 50,000 euros for similar practices on three sites. Publishers in Belgium should expect sector-wide sweeps with technical evidence and orders addressed to each violation.

CNIL, first evaluation criteria for cookie walls and paywalls

[68] · 16 May 2022 FRANCE REGULATOR GUIDANCE COOKIE WALLS CONSENT OR PAY

The CNIL sets out when conditioning access on consent can still yield free consent: a real and equitable alternative must exist, a paid alternative must be reasonably priced (the CNIL sets no threshold but encourages publishers to publish their pricing analysis), consent must be requested only for trackers needed to monetise the free path, and the paid path may carry only strictly necessary trackers, with separate consent for third-party content. The criteria are applied case by case to publishers serving French users. Document the pricing rationale and audit the paid path for stray advertising or analytics tags.

Belgian DPA (APD/GBA), decision 21/2022 on IAB Europe and the Transparency and Consent Framework

[69] · 2 February 2022 BELGIUM ENFORCEMENT SUPERSEDED TCF CONSENT ENFORCEMENT

The Litigation Chamber found that the TC String generated under the TCF is personal data, that IAB Europe is a controller for it, and that the framework breached the GDPR on legal basis, transparency, security and accountability; it fined IAB Europe 250,000 euros and gave two months to submit an action plan, which it approved on 11 January 2023. The decision passed the one-stop-shop consistency process and was endorsed by all concerned authorities. On 14 May 2025 the Market Court annulled decision 21/2022 on procedural grounds while confirming its findings and the fine in its own judgment.

Conseil d'Etat, decision no. 449209: Google's 100 million euro cookie fine confirmed

[70] · 28 January 2022 FRANCE COURT DECISION ENFORCEMENT CONSENT

The Conseil d'Etat held that the GDPR one-stop-shop mechanism does not apply to enforcement of the ePrivacy Directive, so the CNIL was competent to sanction Google's cookie practices under article 82 without going through the Irish lead authority, and that a 100 million euro fine was proportionate given Google's market share above 90 percent in France, 47 million affected users and the advertising revenue involved. It also refused a preliminary reference to the CJEU. Any operator serving French users should expect direct CNIL enforcement regardless of where its EU establishment sits.

Landgericht Muenchen I, judgment 3 O 17493/20 on Google Fonts embedded from Google servers

[71] · 20 January 2022 GERMANY COURT DECISION CONSENT TRANSFERS

The court held that loading Google Fonts from Google's servers transmits the visitor's dynamic IP address to Google without consent, which infringes the general right of personality under section 823(1) BGB and article 6(1)(a) GDPR, and awarded 100 euros in non-material damages plus an injunction. The judgment triggered a wave of warning letters in Germany and is the reference for treating third-party resource loads as data transfers needing a legal basis. Self-host fonts, maps and scripts or gate them behind consent; a banner covering cookies alone does not address the IP transfer.

Austrian Datenschutzbehoerde, decision on Google Analytics and EU-US transfers (noyb model complaint 101)

[72] · 13 January 2022 AUSTRIA ENFORCEMENT TRANSFERS ANALYTICS EXEMPTION ENFORCEMENT SECONDARY SOURCE

In the first decision on noyb's 101 complaints after Schrems II, the DSB held that an Austrian website's use of Google Analytics transferred personal data (identifiers, IP address, browser data) to the United States in breach of Chapter V GDPR, because the standard contractual clauses and Google's supplementary measures could not prevent access by US intelligence services under FISA 702. The reasoning was adopted by other authorities in 2022 and drove the move to consent-gated or EU-hosted analytics. The EU-US Data Privacy Framework adopted in July 2023 changed the transfer basis, but the analysis of what analytics tags actually send remains the practical checklist.

UOOU (Czech Republic), cookies only with consent from 1 January 2022 (amendment to the Electronic Communications Act)

[73] · 1 January 2022 CZECH REPUBLIC LEGISLATION CONSENT STRICTLY NECESSARY

The Czech DPA explains that the amendment to Act No. 127/2005 on Electronic Communications, effective 1 January 2022, removed the ambiguity that had let operators read the law as opt-out: website operators may collect visitors' data through cookies only on the basis of demonstrable consent (opt-in), with an exception only for technical cookies necessary for transmission and for providing the service, including security. Consent through pre-set browser settings or a statement that staying on the site means consent is not valid, and the controller must be able to prove consent. Czech-facing sites should present layered information and per-purpose choices.

CNIL, Deliberation SAN-2021-023: Google fined 150 million euros because refusing cookies took more clicks than accepting

[74] · 31 December 2021 FRANCE ENFORCEMENT REJECT BUTTON DARK PATTERNS ENFORCEMENT

The CNIL fined Google LLC 90 million euros and Google Ireland Limited 60 million euros because google.fr and youtube.com offered a one-click accept button but required several clicks to refuse all cookies, which the CNIL held discourages refusal and invalidates consent under article 82. An injunction required a refusal mechanism as simple as acceptance within three months, backed by 100,000 euros per day of delay. The decision is the CNIL's clearest statement that refusing must be as simple as accepting, which in practice means a reject all control on the first layer. The CNIL later closed the injunction after Google added a reject all button.

CNIL, Deliberation SAN-2021-024: Facebook Ireland fined 60 million euros over the refusal path on facebook.com

[75] · 31 December 2021 FRANCE ENFORCEMENT REJECT BUTTON DARK PATTERNS ENFORCEMENT

The CNIL fined Facebook Ireland Limited 60 million euros under article 82 because facebook.com let users accept cookies in one click but required several clicks to refuse, and because the button ending the refusal path was labelled Accept cookies, which misled users about what they were doing. An injunction with a penalty of 100,000 euros per day required a refusal mechanism as simple as acceptance within three months. Button labels on the refusal path must say what they do, and the CNIL has since closed the injunction.

CNPD (Luxembourg), updated guidelines on cookies and other tracking devices

[76] · 26 October 2021 LUXEMBOURG REGULATOR GUIDANCE CONSENT STRICTLY NECESSARY

The CNPD published an updated set of guidelines, in French, for operators of websites and applications on the use of cookies and other tracking devices, distinguishing essential cookies that need no consent from non-essential cookies that require prior informed consent, and accompanied by a practical fact sheet for the public and for operators. The guidelines are the CNPD's stated reference for compliance in Luxembourg and are aligned with the CJEU and EDPB positions. Operators established in Luxembourg, including many EU headquarters of platforms, should map their banners to the guidelines' categories.

Traficom, guidance on cookies and other information stored on users' terminal devices (service providers)

[77] · 13 September 2021 FINLAND REGULATOR GUIDANCE CONSENT REJECT BUTTON STRICTLY NECESSARY

Following Helsinki Administrative Court rulings of 8 April 2021 that confirmed Traficom as the competent authority for cookie consent questions, the agency's guidance under section 205 of the Act on Electronic Communications Services (917/2014) states that consent for non-essential cookies cannot be given through browser settings, continued use or pre-ticked toggles, must be as easy to refuse as to give and as easy to withdraw, and that legitimate interest is not a basis for storing on the terminal. Only cookies whose sole purpose is transmitting a communication or that are necessary for a service the user has requested (session login, shopping basket, language choice, load balancing) are exempt. The page records updates through 23 April 2026 and enforcement decisions against major Finnish providers for setting consent-requiring cookies without valid consent.

Garante per la protezione dei dati personali, Linee guida cookie e altri strumenti di tracciamento (provvedimento n. 231)

[78] · 10 June 2021 ITALY REGULATOR GUIDANCE CONSENT COOKIE WALLS ANALYTICS EXEMPTION

The guidelines, published in the Gazzetta Ufficiale on 9 July 2021 with six months to comply, apply article 122 of the Italian Privacy Code: scrolling is not consent, cookie walls are unlawful unless an equivalent alternative exists, closing the banner with the X (top right, graphically equal to the accept control) must leave default settings in place, the banner may be re-presented only after at least six months or a material change, and analytics cookies escape consent only with IP truncation and no cross-site combination. Every site addressing Italian users must follow them; the Garante cites them in each cookie warning and fine.

AEPD, PS/00032/2020: Iberia fined 30,000 euros for a banner with no way to refuse cookies

[79] · 3 February 2021 SPAIN ENFORCEMENT REJECT BUTTON COOKIE WALLS ENFORCEMENT

The AEPD imposed the maximum 30,000 euro fine for a leve infringement of article 22.2 LSSI under article 39.1.c because Iberia's banner used unclear wording, cookies were installed on the first visit, the second layer did not identify third-party cookies or their retention periods, and there was no genuine way to refuse: users could only accept or open the settings, where cookies had to be rejected group by group behind a cookie wall. The AEPD also found that the compliance changes Iberia claimed had not been implemented until after proceedings began, and confirmed the fine on reconsideration. A banner without an easy reject option reaches the top of the leve scale in Spain.

CNIL, Deliberation SAN-2020-012: Google LLC and Google Ireland fined 100 million euros for cookies on google.fr

[80] · 7 December 2020 FRANCE ENFORCEMENT CONSENT ENFORCEMENT

The CNIL fined Google LLC 60 million euros and Google Ireland Limited 40 million euros under article 82 for placing advertising cookies on google.fr before any user action, for a banner that did not explain purposes or how to refuse, and for an opposition mechanism that left one cookie active. An injunction carried a penalty of 100,000 euros per day of delay. Cookie rules fall outside the GDPR one-stop shop, so the CNIL acts directly against non-French controllers. The Conseil d'Etat upheld the decision on 28 January 2022.

CNIL, Deliberation SAN-2020-013: Amazon Europe Core fined 35 million euros for cookies on amazon.fr

[81] · 7 December 2020 FRANCE ENFORCEMENT CONSENT ENFORCEMENT

The CNIL found that more than 40 advertising cookies were written to French users' terminals on arrival at amazon.fr, whether from the home page or from third-party advertisements, and that the banner text (offer and improve our services) described neither the advertising purpose nor the means of refusal, in breach of article 82. The fine was 35 million euros with a three-month injunction backed by 100,000 euros per day. Landing pages reached from advertising links need the same banner as the home page. The Conseil d'Etat confirmed the sanction on 27 June 2022 (decision no. 451423).

CNIL, Deliberation 2020-091: guidelines on cookies and other trackers (article 82 of the French Data Protection Act)

[82] · 17 September 2020 FRANCE REGULATOR GUIDANCE CONSENT REJECT BUTTON ANALYTICS EXEMPTION

The guidelines restate article 82 of the loi Informatique et Libertés: reading or writing on a user's terminal requires prior, free, specific, informed and unambiguous consent, continued browsing is not consent, and refusing trackers must be as easy as accepting them. They apply to every operator addressing users in France, including third parties whose trackers a site loads, and exempt only trackers strictly necessary for the service or for audience measurement under narrow conditions. Keep proof of consent available at any time, and treat the July 2019 guidelines they replace (Deliberation 2019-093) as superseded.

CNIL, Deliberation 2020-092: recommendation on practical arrangements for cookies and other trackers

[83] · 17 September 2020 FRANCE REGULATOR GUIDANCE CONSENT REJECT BUTTON DARK PATTERNS

The recommendation gives the CNIL's expected banner design: a first layer that names every purpose, gives access to the full list of controllers behind consent-requiring trackers, and offers an accept action and a refuse action of equal effort, with a refusal remembered so that the user is not asked again at each visit. It applies to every organisation using trackers as defined in the 2020 guidelines, web and mobile first, and is the reference the CNIL uses in its cookie fines. Build banners to it, log consent and refusal, and re-ask no more often than the recommended six-month rhythm.

Conseil d'Etat, decision no. 434684 on the CNIL's 2019 cookie guidelines (cookie walls)

[84] · 19 June 2020 FRANCE COURT DECISION COOKIE WALLS CONSENT

The Conseil d'Etat annulled the CNIL's general ban on cookie walls in its July 2019 guidelines because a soft-law instrument cannot impose an absolute prohibition, while confirming the requirements of purpose-specific consent, easy refusal and withdrawal, recommended retention periods and information on consent-exempt trackers. The ruling binds the CNIL and frames how French regulators assess walls: freedom of consent is judged case by case. Practitioners can operate a wall in France only where a genuine alternative exists, and the CNIL's May 2022 criteria now set the test.

Bundesgerichtshof, judgment I ZR 7/16 (Cookie-Einwilligung II, Planet49)

[85] · 28 May 2020 GERMANY COURT DECISION CONSENT DARK PATTERNS

Following the CJEU's judgment in C-673/17, the BGH held that section 15(3) TMG had to be read in conformity with article 5(3) of the ePrivacy Directive, so cookies for advertising and market research require active consent and a pre-ticked checkbox does not provide it. The same judgment found consent to telephone advertising invalid where the user faced an onerous opt-out list of partner companies. The ruling ended the German opt-out reading for non-essential cookies and was later codified in section 25 TTDSG (now TDDDG) from 1 December 2021.

Data Protection Commission, Guidance note on cookies and other tracking technologies

[86] · 6 April 2020 IRELAND REGULATOR GUIDANCE CONSENT ANALYTICS EXEMPTION STRICTLY NECESSARY

Applying Regulation 5(3) of the ePrivacy Regulations 2011 (S.I. 336 of 2011), the DPC states that storing or accessing information on a device requires consent after clear information, that pre-ticked boxes and sliders set to on are not consent following Planet49, that rejecting must be as easy as accepting, that analytics cookies need consent even if first-party aggregated analytics are a low enforcement priority, and that consent should be re-affirmed no later than six months after it is recorded. Only communications and strictly necessary cookies (for example shopping-basket session cookies) are exempt. It remains the operative Irish standard for banner design.

Data Protection Commission, Report on the use of cookies and other tracking technologies (cookie sweep)

[87] · 6 April 2020 IRELAND REGULATOR GUIDANCE HISTORICAL CONSENT ENFORCEMENT

The DPC surveyed a selection of Irish websites across media and publishing, retail, food ordering, insurance, sport and the public sector between August and December 2019 to examine how controllers obtain consent for cookies and other tracking technologies, and found that advertising technology and tracking were core to many of the business models examined, with widespread non-compliance. The report was published alongside the DPC's guidance note and framed the DPC's stated intention to examine consent practices. Use it to understand which practices the DPC flagged, then apply the guidance note as the operative rules.

Hellenic DPA, Recommendations 1/2020 on compliance of controllers with the electronic communications legislation for trackers

[88] · 25 February 2020 GREECE REGULATOR GUIDANCE REJECT BUTTON COOKIE WALLS DARK PATTERNS

Issued after the authority found widespread non-compliance by Greek website operators, the recommendations under Law 3471/2006 require prior consent for every tracker not technically necessary, including third-party analytics such as Google Analytics, with a two-month grace period. Accepting and refusing must take the same number of clicks from the same layer, withdrawal must be as easy as consent, access may not be restricted for refusal, buttons and fonts should share size, emphasis and colour, and the storage period of a refusal must equal that of an acceptance. Scrolling, continued browsing, pre-ticked boxes and browser settings are invalid. The HDPA re-invoked points C4 and C7 in its 2022 action on news websites.

Denmark, Cookiebekendtgoerelsen (BEK nr 1148 af 9. december 2011) on information and consent for storage of or access to information on terminal equipment

[89] · 14 December 2011 DENMARK LEGISLATION CONSENT STRICTLY NECESSARY

The Danish cookie order, in force since 14 December 2011, prohibits storing or accessing information on an end user's terminal without prior information and consent, and exempts storage or access that is a technical precondition for delivering a service the user requested or for transmitting communications. It applies to any website or app addressed to Danish users regardless of whether personal data is processed. The Danish Agency for Digital Government (Digitaliseringsstyrelsen) supervises the order, while Datatilsynet supervises the subsequent processing under the GDPR; the two authorities' joint guidance of May 2025 explains how the regimes interlock.

United Kingdom

18 documents, newest first.

Data (Use and Access) Act 2025 (Commencement No. 9 and Transitional and Saving Provisions) Regulations 2026, SI 2026/1015: abolition of the Information Commissioner and transfer to the Information Commission

[90] · 30 September 2026 UNITED KINGDOM LEGISLATION APPLIES FROM A FUTURE DATE ENFORCEMENT OTHER

Made on 10 September 2026, regulation 2 commences sections 118 and 119 of the 2025 Act (with the related section 117(4)(a) amendment) on 30 September 2026: the office of Information Commissioner is abolished and its functions transfer to the Information Commission, a body corporate with non-executive and executive members, including an interim chief executive. Update references in privacy notices, DPIAs and contracts to the Information Commission after that date; no change to PECR obligations follows from the renaming.

ICO advice to government on potential changes to online advertising rules (PECR regulation 6 exception for low-risk advertising)

[91] · 18 May 2026 UNITED KINGDOM PROPOSAL PROPOSED CONSENT OTHER

The ICO advised the Department for Science, Innovation and Technology that regulation 6 could be amended by secondary legislation, using the power in the Data (Use and Access) Act 2025, to allow certain low-risk forms of online advertising to operate without consent where advertising is based on the context of the content viewed rather than a person's past activity, while intrusive tracking and profiling over time and across services would continue to require consent. It is advice to government, not law, and the ICO states that the existing PECR rules still apply and organisations must continue to comply. Keep consent for behavioural advertising and monitor for draft regulations.

ICO Guidance on the use of storage and access technologies (final version)

[92] · 29 April 2026 UNITED KINGDOM REGULATOR GUIDANCE CONSENT ANALYTICS EXEMPTION STRICTLY NECESSARY

The guidance explains how PECR regulation 6 and the UK GDPR apply to cookies, tracking pixels, link decoration, local storage, device fingerprinting, scripts and tags across websites, apps and connected TV, with chapters on the five exceptions, consent in practice, online advertising, cookie walls and consent or pay, and what a simple means of objecting requires. The statistical exception covers how a service is used, not who uses it; the appearance exception excludes adapting content to inferred interests; both need information and a free objection control, and legitimate interests is unavailable for non-exempt technologies. It replaces the 2024 and 2025 drafts and applies to every organisation subject to PECR.

PECR Regulation 6 (Privacy and Electronic Communications (EC Directive) Regulations 2003, SI 2003/2426), as amended by the Data (Use and Access) Act 2025

[93] · 5 February 2026 UNITED KINGDOM LEGISLATION CONSENT STRICTLY NECESSARY ANALYTICS EXEMPTION

Regulation 6(1) prohibits storing information, or gaining access to information stored, in a subscriber's or user's terminal equipment, subject to the exceptions in new Schedule A1; regulation 6(2) extends the prohibition to instigating storage or access and to collecting information automatically emitted by the device, which captures fingerprinting and pixels. It binds any person operating a website, app or connected service reaching UK users, not only controllers. Map every storage or access operation to one Schedule A1 exception (consent, transmission, strictly necessary, statistical, appearance, emergency) and document it. The substituted text applies from 5 February 2026 under SI 2026/82, regulation 2(w).

Data (Use and Access) Act 2025, section 112 and Schedule 12: new Schedule A1 to PECR (exceptions to the storage and access prohibition)

[94] · 5 February 2026 UNITED KINGDOM LEGISLATION ANALYTICS EXEMPTION STRICTLY NECESSARY CONSENT

Schedule 12 inserts Schedule A1 into PECR. Paragraph 2 permits storage or access where the user receives clear and comprehensive information and gives consent, which may be signified through browser or application settings; paragraphs 3 and 4 keep the transmission and strictly necessary exceptions; paragraph 5 covers collection solely for statistical purposes to improve the service; paragraph 6 covers adapting or enhancing a website's appearance or functionality; paragraph 7 covers emergency geolocation. Paragraphs 5 and 6 both require prior information and a simple free means of objecting; paragraph 5 additionally bars disclosure except to a party assisting with the improvements. Rely on paragraph 5 only with processor-only analytics and a live objection control.

Data (Use and Access) Act 2025, section 115 and Schedule 13: PECR enforcement aligned with the Data Protection Act 2018

[95] · 5 February 2026 UNITED KINGDOM LEGISLATION ENFORCEMENT CONSENT

Schedule 13 substitutes Schedule 1 to PECR and applies the Data Protection Act 2018 enforcement toolkit to regulation 6 breaches: information, assessment, interview and enforcement notices, powers of entry and penalty notices under sections 155 to 157 as modified. The maximum penalty for a regulation 6 contravention becomes the UK GDPR higher ceiling of £17.5 million or 4 per cent of worldwide annual turnover, whichever is greater, replacing the previous £500,000 cap; the former threshold of serious contravention causing substantial damage or distress falls away. It binds every person subject to PECR. Treat tag deployment as a UK GDPR-scale liability. In force from 5 February 2026 under SI 2026/82.

Data (Use and Access) Act 2025 (Commencement No. 6 and Transitional and Saving Provisions) Regulations 2026, SI 2026/82

[96] · 5 February 2026 UNITED KINGDOM LEGISLATION ANALYTICS EXEMPTION ENFORCEMENT

Regulation 2 brings the PECR provisions of the 2025 Act into force on 5 February 2026, including section 112 and Schedule 12 (regulation 6 and Schedule A1 exceptions), section 115 and Schedule 13 (enforcement and penalties), and section 101 on penalty notices; regulation 3 commences further provisions on 19 June 2026. It applies to every organisation subject to PECR and the UK GDPR. Use 5 February 2026 as the date from which the statistical and appearance exceptions can be relied on and from which regulation 6 breaches attract UK GDPR-level fines; the transitional provisions govern investigations opened before that date.

UK GDPR Article 4(11) and Article 7: definition and conditions for consent

[97] · 1 January 2026 UNITED KINGDOM LEGISLATION CONSENT REJECT BUTTON DARK PATTERNS

PECR consent means consent as defined in the UK GDPR: a freely given, specific, informed and unambiguous indication by statement or clear affirmative action (Article 4(11)). Article 7 requires the controller to demonstrate consent, to present the request clearly distinguishable from other matters in plain language, to allow withdrawal at any time with withdrawal as easy as giving consent, and to weigh whether access to a service is conditioned on unnecessary consent when judging whether it is freely given. It binds every controller relying on consent. Build banners so reject and withdraw match accept in effort, keep consent records, and never treat browsing or pre-ticked boxes as consent.

ICO action secures increased cookie compliance across the UK's top 1,000 websites (campaign outcome)

[98] · 4 December 2025 UNITED KINGDOM ENFORCEMENT ENFORCEMENT REJECT BUTTON CONSENT

The ICO reports that 979 of the top 1,000 UK websites met its compliance checks at the most recent test, with 21 still failing; 415 passed without intervention and 564 improved after initially failing, following warning letters, investigations and 17 preliminary enforcement notices. The checks were whether advertising cookies were stored before the user could choose, whether rejecting was as easy as accepting, and whether cookies were placed despite refusal. The outcome covers sites reaching an estimated 80 per cent of UK internet users over 14. Expect periodic re-testing; keep the three checks in release testing so sites do not revert.

CMA decision to release Google from the Privacy Sandbox commitments

[99] · 17 October 2025 UNITED KINGDOM ENFORCEMENT BROWSER SIGNALS OTHER

Following a consultation opened in June 2025 after Google abandoned third-party cookie deprecation in Chrome, the CMA decided on 17 October 2025 that it had reasonable grounds to believe its competition concerns no longer arose and released Google from all the 2022 commitments, ending the CMA and ICO oversight of Privacy Sandbox design. The decision concerns Google but removes the regulatory driver behind UK cookie deprecation planning. Plan on third-party cookies persisting in Chrome for UK users, keep consent-based tagging as the compliance baseline, and treat Privacy Sandbox APIs as optional rather than a mandated replacement.

ICO consultation on a new chapter within the draft updated guidance on storage and access technologies (Data (Use and Access) Act exceptions)

[100] · 26 September 2025 UNITED KINGDOM REGULATOR GUIDANCE SUPERSEDED ANALYTICS EXEMPTION CONSENT

Opened on 7 July 2025 and closed on 26 September 2025, the consultation added a chapter explaining the statistical purposes and appearance exceptions introduced by the Data (Use and Access) Act 2025, including the information and objection conditions and the restriction on sharing statistical data beyond processors. It was addressed to website and app operators, analytics vendors and consent management platform providers serving UK users. Its content was folded into the final guidance of 29 April 2026, which supersedes it; cite the final text rather than the draft chapter.

ICO consultation on the draft updated guidance on storage and access technologies (draft that replaced the 2019 cookies guidance)

[101] · 21 March 2025 UNITED KINGDOM REGULATOR GUIDANCE SUPERSEDED CONSENT PIXELS WIRETAP STRICTLY NECESSARY

The draft, previously known as the detailed cookies guidance, widened the ICO's cookie position to all storage and access technologies, confirmed that consent must meet the UK GDPR standard, that reject must be as easy as accept, that the strictly necessary exception is judged from the user's perspective and that pixels and fingerprinting are in scope. It was open for comment until 5 pm on 21 March 2025 and was directed at every organisation deploying such technologies for UK users. Use it only to trace how the ICO's thinking developed; it was superseded by the final guidance published on 29 April 2026.

ICO Consent or pay guidance

[102] · 23 January 2025 UNITED KINGDOM REGULATOR GUIDANCE CONSENT OR PAY CONSENT CHILDREN

The guidance states that consent or pay models, which offer a choice between consenting to personalised advertising, paying a fee, or leaving the service, can comply with UK data protection law where consent is freely given, assessed against four factors: power imbalance, equivalence of the core service, an appropriate fee, and privacy by design in how the choice is presented. It applies to any organisation operating or considering such a model for UK users, with additional expectations where services are likely to be accessed by children under 18 (the Children's code applies, with profiling off by default) and parental consent where consent is sought from children under 13. Document the four-factor assessment in a DPIA before launch and present both options with equal prominence.

ICO takes action to tackle cookie compliance across the UK's top 1,000 websites (2025 online tracking strategy)

[103] · 23 January 2025 UNITED KINGDOM ENFORCEMENT ENFORCEMENT REJECT BUTTON CONSENT

The announcement launched the ICO's 2025 online tracking strategy with a plan to bring the UK's top 1,000 websites into compliance, having already assessed the top 200 and communicated concerns to 134 of them, setting out the expectation that they comply with the law by giving people meaningful choice. It also sets out the ICO's position on consent or pay models and further engagement with consent management platforms. It targets every operator of a high-traffic UK website and the ad tech vendors behind them. Audit banners so that non-essential advertising cookies are not set before a choice is made and rejecting is as easy as accepting.

ICO reprimand: Sky Betting and Gaming (Bonne Terre Limited) for advertising cookies without consent

[104] · 17 September 2024 UNITED KINGDOM ENFORCEMENT ENFORCEMENT CONSENT TCF

The ICO found that between 10 January and 3 March 2023 Bonne Terre Limited, trading as Sky Betting and Gaming, processed personal data through advertising cookies and shared it with ad tech companies before visitors could accept or reject them, in a way that was not lawful, transparent or fair, and issued a reprimand; the company made changes in March 2023. The same announcement reported that 52 of 53 warned top-100 websites had made changes, leaving 99 of the top 100 either offering a meaningful choice or making improvements. It applies to any operator whose tags fire before consent. Verify tag sequencing on first page load and block ad tech calls until consent is recorded.

ICO and CMA joint position paper: Harmful design in digital markets (online choice architecture and cookie choices)

[105] · 9 August 2023 UNITED KINGDOM REGULATOR GUIDANCE DARK PATTERNS REJECT BUTTON CONSENT

The joint paper identifies design practices that could break data protection law, including failing to give an equal choice between accept all and reject all cookies, overly complicated privacy controls, leading language steering data sharing, bundled choices and default settings that give less control. It applies to every organisation designing online interfaces for UK consumers; the ICO warns it will act against businesses that deliberately and persistently design unfairly, and the CMA warns that businesses standing in the way risk action from either regulator. Use the paper as the UK benchmark for banner and preference-centre design.

CMA acceptance of Google's Privacy Sandbox commitments (investigation into Google's Privacy Sandbox browser changes)

[106] · 11 February 2022 UNITED KINGDOM ENFORCEMENT SUPERSEDED BROWSER SIGNALS OTHER

On 11 February 2022 the CMA accepted binding commitments under which Google would design and test the Privacy Sandbox with the CMA and the ICO before any final decision to remove third-party cookies from Chrome, would not self-preference its own ad tech and would limit its use of data, with a monitoring trustee appointed in March 2022. The commitments bound Google but set the timeline for every publisher and vendor planning for cookie deprecation in the UK. Google announced in July 2024 that it would retain third-party cookies with a user choice and in April 2025 that no prompt would ship. The CMA released the commitments on 17 October 2025.

ICO Guidance on the use of cookies and similar technologies (2019 detailed cookies guidance)

[107] · 3 July 2019 UNITED KINGDOM REGULATOR GUIDANCE SUPERSEDED CONSENT ANALYTICS EXEMPTION COOKIE WALLS

Version 1.0 of 3 July 2019 set the ICO's post-GDPR cookie position: PECR consent means GDPR consent, continuing to browse is not consent, pre-ticked boxes and default-on sliders are invalid, analytics cookies are not strictly necessary and need consent, non-essential cookies must not be set before consent, third parties must be named, and cookie walls are acceptable only in limited circumstances. It applied to every operator of a website or app used from the UK and still appears in audit checklists and vendor documentation. It has been superseded by the Guidance on the use of storage and access technologies of 29 April 2026, which reflects the statistical exception for analytics.

Switzerland and other Europe

11 documents, newest first.

noyb and the Norwegian Consumer Council, complaint against Schibsted's pay or okay model with the Norwegian DPA

[108] · 3 June 2026 NORWAY ENFORCEMENT PROPOSED CONSENT OR PAY CONSENT SECONDARY SOURCE

noyb filed a complaint with Datatilsynet, in cooperation with the Norwegian Consumer Council, alleging that Schibsted's requirement that readers of vg.no either accept tracking for personalised advertising or pay 49 NOK a month produces consent rates near 99 percent although only about 3 percent of users want to be tracked, so consent is not freely given under Articles 5(1), 6(1) and 7 GDPR. The complaint records that 64 consumers contacted the Consumer Council about the model between 28 April and 2 June 2026 and that Schibsted rolled the model out on its Swedish sites first. The complaint is pending; Nordic publishers should expect the first consent-or-pay decisions on news sites under the GDPR to come from this case.

FDPIC Factsheet on the use of cookies and similar technologies (for internet users)

[109] · 31 March 2026 SWITZERLAND REGULATOR GUIDANCE CONSENT OTHER

The factsheet, published on 31 March 2026, is the FDPIC's awareness document for internet users and complements rather than replaces the operator-facing Guidelines of 6 October 2025. It explains what cookies do, encourages data-minimalist use, warns against blanket acceptance of all cookies and points users to opt-in and opt-out controls and their rights of control and choice. It creates no obligations for operators but signals the FDPIC's expectation that refusal and withdrawal controls are easy to find and use. Use it to anticipate the complaints the FDPIC will receive and to test that the refusal path on Swiss-facing sites works as the factsheet describes.

FDPIC Guidelines on data processing using cookies and similar technologies, version 1.1

[110] · 6 October 2025 SWITZERLAND REGULATOR GUIDANCE CONSENT DARK PATTERNS CONSENT OR PAY

Version 1.1 of 6 October 2025 replaces version 1.0 of 22 January 2025 and sets out how the FDPIC supervises cookies, pixels and similar technologies under the FADP, the Data Protection Ordinance and Article 45c TCA: necessary cookies need information only; other non-essential cookies justified by overriding interests need information and a mandatory opt-out; express consent is required for sensitive data, high-risk profiling, any profiling by federal bodies and unexpected uses that seriously intrude, including paid access for multiple embedded advertising third parties and location profiling. Banners must not use pre-ticked boxes or dark patterns; cookie paywalls need a proportionate price. The guidelines themselves state only the Article 45c TCA fine of up to CHF 5,000; the general FADP penalty regime separately allows fines of up to CHF 250,000.

Datatilsynet (Norway), guidance on consent for cookies and other tracking technologies: ten practical rules

[111] · 3 April 2025 NORWAY REGULATOR GUIDANCE REJECT BUTTON DARK PATTERNS COOKIE WALLS

Applying ekomloven section 3-15, the guidance sets ten rules for a valid banner: clear information in the consent box, full information behind it, no conditioning of access on consent, per-purpose choice, no pre-ticked boxes or acceptance by passivity, refusal without extra clicks, no hiding or de-emphasising the reject option, plain wording on buttons, easy withdrawal, and internal control of what the site sets. It states that other GDPR bases can almost never replace consent for the subsequent processing of cookie data. The current version, updated in April 2025, replaces the 2023 guidance that first demanded an equal reject option.

Norway, Lov om elektronisk kommunikasjon (ekomloven) section 3-15: cookies require GDPR-standard consent

[112] · 1 January 2025 NORWAY LEGISLATION CONSENT STRICTLY NECESSARY

The new Electronic Communications Act of 13 December 2024, in force from 1 January 2025, replaces the 2003 act and provides in section 3-15 that storing or accessing information on a user's equipment is prohibited unless the user has been informed of what is processed, the purpose and who processes it, and has given consent meeting the GDPR's requirements; exemptions cover transmission and storage strictly necessary for an information-society service the user expressly requested. Browser settings no longer count as consent in Norway. Datatilsynet and Nkom share supervision: Nkom decides scope and exemptions, Datatilsynet decides information and consent validity.

Norway: Electronic Communications Act (ekomloven) section 3-15 on cookies and similar technologies, with Nkom and Datatilsynet joint supervision

[113] · 1 January 2025 NORWAY LEGISLATION CONSENT BROWSER SIGNALS ENFORCEMENT

The new ekomloven, in force from 1 January 2025, provides in section 3-15 that use of cookies and similar technologies requires consent valid under the GDPR: voluntary, specific, informed, unambiguous, given by active action, documented and easily withdrawable, replacing the former section 2-7b under which browser default settings counted as consent. Supervision is shared by Nkom and Datatilsynet from the same date. It binds every operator of a website or app directed at users in Norway, whether or not established there. Retire any reliance on browser settings for Norwegian traffic and apply the same opt-in banner standard as under the EU rules, with the Norwegian regulators as enforcement contacts.

Norway Datatilsynet guidance page on cookies and information capsules (informasjonskapsler)

[114] · 1 January 2025 NORWAY REGULATOR GUIDANCE CONSENT OTHER

Datatilsynet's cookie page states that consent to cookies must be GDPR-valid consent, so that browser settings alone do not suffice, and explains the interaction between the cookie rule in ekomloven and the personal data rules in personopplysningsloven and the GDPR, both of which apply at once. It is addressed to Norwegian website and app operators and to foreign operators serving Norwegian users. Read it together with Nkom's page on section 3-15, since the Datatilsynet page still cites the former section 2-7b and Nkom as sole supervisor; the operative rule since 1 January 2025 is section 3-15 with joint supervision.

Turkey: KVKK Guideline on Cookie Practices (Çerez Uygulamaları Hakkında Rehber)

[115] · July 2025 TURKEY REGULATOR GUIDANCE CONSENT STRICTLY NECESSARY TRANSFERS

The Personal Data Protection Authority's guideline, in its July 2025 edition, applies Law No. 6698 to cookies: cookies strictly necessary for a service the user requested, and first party analytics, may be used without explicit consent under Article 5(2), while social plugin tracking and online behavioural advertising cookies require explicit consent under Article 5(1), with information duties under Article 10 met through a cookie policy and banner, and cross-border transfers through cookies subject to Article 9. It applies to data controllers processing personal data through cookies on websites and web applications. Provide a banner with equally prominent accept, reject and preferences buttons, granular explicit opt-in for non-essential cookies, no consent inferred from mere site use, and a cookie policy listing each cookie, purpose, type and duration.

Federal Act on Data Protection (FADP, SR 235.1), revised text

[116] · 1 September 2023 SWITZERLAND LEGISLATION CONSENT OTHER

The revised FADP entered into force on 1 September 2023 without a transition period. Article 6 requires that consent, where relied on, is voluntary and informed, and express for sensitive personal data and for high-risk profiling, which Article 5 defines as profiling entailing a high risk to personality or fundamental rights; Article 19 imposes a duty to inform at collection, including the countries of any disclosure abroad. Article 60 provides criminal fines of up to CHF 250,000 against the responsible individual for wilful breaches of the information duties. It binds private controllers and federal bodies; tracking needs consent only where it reaches sensitive data or high-risk profiling.

Turkey: Personal Data Protection Board decision on Amazon Turkey (cookies and marketing without explicit consent), decision no. 2020/173

[117] · 27 February 2020 TURKEY ENFORCEMENT ENFORCEMENT CONSENT EMAIL MARKETING

The Board found that Amazon Turkey processed personal data through cookies and sent marketing communications without obtaining explicit consent and without adequate information, in breach of Articles 4, 5, 10 and 12 of Law No. 6698, and that it also transferred data abroad without valid explicit consent under Article 9. It imposed administrative fines totalling TRY 1,200,000: TRY 1,100,000 under Article 18(1)(b) for the Article 12 failure to take the technical and organisational measures that would have prevented processing without explicit consent, and TRY 100,000 under Article 18(1)(a) for failing to inform users about the cookies, and it ordered the company to bring its privacy notice, terms and cookie notice into line and report back. The decision binds the addressee and sets the Board's position for all controllers using cookies on Turkish users. It remains the reference enforcement precedent that the 2022 Guideline on Cookie Practices later codified; treat cookie consent in Turkey as an opt-in explicit consent regime.

Telecommunications Act (TCA, SR 784.10), Article 45c: data on external equipment

[118] · 1 April 2007 SWITZERLAND LEGISLATION CONSENT STRICTLY NECESSARY OTHER

Article 45c permits the processing of data on external equipment by means of transmission using telecommunications techniques, which covers setting and reading cookies and similar identifiers, only where users are informed about the processing and its purpose and are informed that they may refuse it, or where the processing is for telecommunications services and charging purposes. It binds every operator of a website or app reaching users in Switzerland; the FDPIC applies it cumulatively with the FADP, reads the refusal requirement as a mandatory opt-out control, and cites a fine of up to CHF 5,000 under Article 53 TCA. Provide the notice and a refusal control before any non-necessary cookie is set.

United States: California

23 documents, newest first.

SB 690 (2025-2026), Chapter 976, Statutes of 2026: amendment of Cal. Penal Code 637.2 for pen register and trap and trace claims against websites and apps

[119] · 30 September 2026 CALIFORNIA LEGISLATION APPLIES FROM A FUTURE DATE PIXELS WIRETAP ENFORCEMENT

Approved by the Governor on 30 September 2026 as Chapter 976, Statutes of 2026, SB 690 amends only section 637.2: an action against a private actor for a section 638.51 pen register or trap and trace violation arising from conduct on an internet website, online application or mobile application may be brought only by the Attorney General. The change reaches pending claims in actions commenced within two years before it operates, and as a non-urgency statute it operates from 1 January 2027. Sections 631 and 632 are untouched, so wiretap and eavesdropping claims over pixels, chat and session replay stay open to private plaintiffs. Keep prior-consent gating for those tools; SB 690 removes one theory, not the risk.

Variety Media, LLC v. Superior Court, No. B350578 (Cal. Ct. App., 2d Dist., Div. 3), tentative opinion on CIPA section 638.51

[120] · 21 August 2026 CALIFORNIA COURT DECISION UNDER APPEAL PIXELS WIRETAP SECONDARY SOURCE

In a tentative opinion issued on 21 August 2026 before argument on 25 August 2026, the Court of Appeal indicated that section 638.51 can reach internet communications but that collecting a visitor's IP address alone does not state a pen register claim, because an IP address identifies the source of a communication whereas a pen register captures information identifying the destination of an outgoing communication; it proposed sustaining the demurrer with leave to amend. The ruling is not final and may change. It applies to website operators sued under the pen register theory. Watch for the final opinion and note that referrer and destination metadata may still support amended claims.

Delete Act (SB 362), Cal. Civ. Code 1798.99.86, accessible deletion mechanism

[121] · 1 August 2026 CALIFORNIA LEGISLATION SALE SHARING OTHER

Section 1798.99.86 required the California Privacy Protection Agency to establish, by 1 January 2026, a free mechanism through which a consumer submits a single verifiable request that every registered data broker delete their personal information. From 1 August 2026 each data broker must access the mechanism at least every 45 days, delete within 45 days of receipt, direct service providers and contractors to do the same, and undergo an independent compliance audit every three years from 1 January 2028. It binds registered data brokers. Process an unverifiable request as an opt-out of sale or sharing, and check whether tracking vendors in the stack are themselves registered brokers.

NetChoice, LLC v. Bonta, No. 25-2366 (9th Cir.), California Age-Appropriate Design Code Act (AB 2273)

[122] · 12 March 2026 CALIFORNIA COURT DECISION CHILDREN DARK PATTERNS

The Ninth Circuit affirmed the preliminary injunction against the Act's data use restrictions (Cal. Civ. Code 1798.99.31(b)(1) to (4)) and its dark patterns prohibition ((b)(7)) on vagueness grounds, but vacated the injunction covering the statute as a whole, the coverage definition and the age estimation requirement, and remanded, leaving the severability of the notice-and-cure provision unresolved. The Act applies to businesses providing online services likely to be accessed by children under 18. Treat the age estimation, high-privacy default settings, child-readable notices and tracking-signal provisions as potentially enforceable while the district court proceedings continue, and keep the earlier injunction history in mind when reading vendor claims.

California Privacy Protection Agency, Order of Decision against Ford Motor Company

[123] · 5 March 2026 CALIFORNIA ENFORCEMENT DARK PATTERNS OPT OUT SIGNALS ENFORCEMENT

The agency's board found that Ford required consumers to complete email verification before it would process a request to opt out of sale or sharing, treated unverified requests as expired and so failed to process dozens of opt-outs within the statutory timeframe; the decision states that unnecessary friction in the opt-out process violates the CCPA. Ford must pay $375,703, process the unverified requests, audit tracking technologies on its website and honour opt-out preference signals including Global Privacy Control. It binds Ford. Remove every confirmation step between the click and the suppression of tags; verification belongs to access and deletion requests, not opt-outs.

California Privacy Protection Agency, Order of Decision against PlayOn Sports

[124] · 3 March 2026 CALIFORNIA ENFORCEMENT COOKIE WALLS OPT OUT SIGNALS CHILDREN

The agency found that the ticketing and streaming platform forced users to accept tracking before they could buy tickets or use the site, directed consumers to Network Advertising Initiative and Digital Advertising Alliance opt-out pages instead of providing its own opt-out, failed to recognise opt-out preference signals and gave insufficient privacy notice. PlayOn must pay $1.10 million, conduct risk assessments and scan its tracking technologies. It binds PlayOn but rules out cookie walls and industry opt-out pages as CCPA compliance. Never condition access on accepting tracking, and operate the opt-out yourself.

People v. The Walt Disney Company (Disney DTC and ABC Enterprises), California Attorney General CCPA settlement

[125] · 11 February 2026 CALIFORNIA ENFORCEMENT OPT OUT SIGNALS SALE SHARING ENFORCEMENT

The Attorney General alleged that Disney applied an opt-out toggle only to the streaming service and device in use rather than the whole account, that its webform opt-out did not stop sales through third-party ad tech code embedded in its platforms, that connected TV apps had no in-app opt-out, and that a Global Privacy Control signal was limited to the device even when the consumer was logged in. Disney paid $2.75 million, the largest CCPA settlement to date, and must honour opt-outs across every linked device and service. It binds Disney. Propagate opt-outs and GPC signals from the browser to the authenticated account and every property tied to it.

California Privacy Protection Agency, Delete Act enforcement against unregistered data brokers (Rickenbacher Data and S&P Global)

[126] · 8 January 2026 CALIFORNIA ENFORCEMENT SALE SHARING ENFORCEMENT

The agency fined Rickenbacher Data LLC (Datamasters) $45,000 and S&P Global, Inc. $62,600 for failing to register as data brokers under the Delete Act, the former for reselling lists of people with conditions such as Alzheimer's disease and addiction. The registration duty binds any business that sells personal information about consumers with whom it has no direct relationship, which can include vendors that build audiences from website tracking. Both companies must register and implement compliance auditing. Check whether any audience, enrichment or identity partner meets the data broker definition before the 1 August 2026 DROP processing obligations apply.

CCPA Updates, Cybersecurity Audits, Risk Assessments, ADMT and Insurance Regulations (approved text, effective 1 January 2026)

[127] · 1 January 2026 CALIFORNIA LEGISLATION OPT OUT SIGNALS BROWSER SIGNALS SALE SHARING

Approved by the Office of Administrative Law on 22 September 2025, the amended regulations took effect on 1 January 2026. Section 7025(c)(6) now requires a business to display whether it has processed a consumer's opt-out preference signal, replacing the earlier permissive wording. Risk assessments are required for processing that presents significant risk, including selling or sharing personal information, with documentation due to the agency by 1 April 2028; ADMT obligations apply from 1 January 2027; cybersecurity audits are staggered from 1 April 2028 by revenue. It binds all CCPA businesses. Add the signal-status indicator to the banner and log selling and sharing through cookies in the risk assessment.

California Privacy Protection Agency, Delete Request and Opt-out Platform (DROP)

[128] · 1 January 2026 CALIFORNIA REGULATOR GUIDANCE SALE SHARING ENFORCEMENT

DROP opened to Californians on 1 January 2026 and consolidates deletion and opt-out requests to more than 600 registered data brokers in a single submission verified through the California Identity Gateway. Data brokers began processing requests on 1 August 2026, status updates may take up to 90 days, and ongoing deletion is required every 45 days. It binds registered data brokers and is operated by the agency under the Delete Act. Failure to process carries fines of $200 per request per day. Confirm whether any advertising or enrichment partner is registered and build the 45-day retrieval cycle into vendor contracts.

California Invasion of Privacy Act, Cal. Penal Code 631 (wiretapping), with 632 and 638.51 (pen register and trap and trace)

[129] · 1 January 2026 CALIFORNIA LEGISLATION PIXELS WIRETAP CONSENT

Section 631(a) makes it an offence to tap a line or to read the contents of a communication in transit without the consent of all parties, or to aid another in doing so; section 638.51 prohibits installing a pen register or trap and trace device without a court order; section 637.2 gives a private right of action. Plaintiffs plead session replay, chat and pixel vendors under 631 and IP or device capture under 638.51. It applies to any website reachable from California. Obtain prior consent before any recording or third-party capture loads; later consent does not cure it. SB 690, awaiting the Governor, would remove the private action under 638.51.

People v. Jam City, Inc., California Attorney General CCPA settlement

[130] · 21 November 2025 CALIFORNIA ENFORCEMENT CHILDREN SALE SHARING ENFORCEMENT

The Attorney General alleged that the developer of 21 mobile games provided no in-app method to opt out of the sale or sharing of personal information and sold or shared the data of users aged 13 to 15 without the affirmative opt-in consent required by section 1798.120(c). Jam City paid $1.4 million in civil penalties and must add in-app opt-out methods and obtain opt-in consent before selling or sharing the data of users aged 13 to 15. It binds Jam City but confirms that in-game ad tech sharing is a sale or share. Provide the opt-out inside the app, not only on a website, and age-screen neutrally.

AB 566, California Opt Me Out Act (Chapter 465, Statutes of 2025), Cal. Civ. Code 1798.136

[131] · 8 October 2025 CALIFORNIA LEGISLATION APPLIES FROM A FUTURE DATE BROWSER SIGNALS OPT OUT SIGNALS

Chaptered on 8 October 2025, the act adds section 1798.136 to the Civil Code and requires a business that develops or maintains a browser to include a setting, easy for a reasonable person to locate and configure, that lets the consumer send an opt-out preference signal. The California Privacy Protection Agency may adopt implementing regulations, and browser developers are not liable for violations by businesses receiving the signal. The obligation is operative from 1 January 2027 and binds browser vendors, not website operators. Expect signal volumes to rise sharply after that date and size opt-out handling accordingly.

California Privacy Protection Agency, Stipulated Final Order against Tractor Supply Company

[132] · 30 September 2025 CALIFORNIA ENFORCEMENT OPT OUT SIGNALS SALE SHARING ENFORCEMENT

The agency found that a Do Not Sell webform did not actually stop sale or sharing through third-party tracking technologies, that opt-out preference signals were not honoured until July 2024, that the privacy policy had not been updated since November 2021 and omitted how signals are processed, that job applicants received no CCPA notice and that third-party contracts lacked required terms. Tractor Supply paid $1,350,000, must scan its digital properties for tracking technologies quarterly, honour opt-out signals, and obtain annual officer certification for four years. It binds Tractor Supply. Prove that a webform opt-out and a GPC signal both suppress every tag, not just the cookie table.

Gutierrez v. Converse Inc., No. 24-4797 (9th Cir.)

[133] · 9 July 2025 CALIFORNIA COURT DECISION PIXELS WIRETAP

The Ninth Circuit affirmed summary judgment against a plaintiff who alleged that Salesforce's chat software on a retailer's website violated CIPA section 631(a), finding no evidence from which a jury could conclude that Salesforce made an unauthorised connection with a telephone wire or read messages in transit. A concurrence went further and reasoned that the section's reference to telegraph or telephone wires does not reach internet communications. The unpublished memorandum applies to operators deploying third-party chat and similar vendors. Keep evidence of what the vendor's software actually accesses or reads, since the plaintiff's inability to show that Salesforce read her messages, rather than merely being capable of doing so, was fatal to the claim.

People v. Healthline Media LLC, California Attorney General CCPA settlement

[134] · 1 July 2025 CALIFORNIA ENFORCEMENT HEALTH DATA PIXELS WIRETAP ENFORCEMENT

The Attorney General alleged that Healthline kept sharing data with advertisers after consumers opted out, ignored Global Privacy Control signals, ran a consent banner that did not actually disable tracking cookies, lacked required contract terms with third parties and breached the purpose limitation principle by sending article titles that revealed diagnoses to advertisers. Healthline paid $1.55 million and must stop disclosing data that links a consumer to an article title suggesting a diagnosis, audit third-party contracts and maintain accurate disclosures. It binds Healthline but is the first purpose limitation enforcement under the CCPA. Strip page titles and URLs that reveal health conditions from ad tech payloads.

California Privacy Protection Agency, Order against Todd Snyder, Inc.

[135] · 1 May 2025 CALIFORNIA ENFORCEMENT CONSENT ENFORCEMENT OPT OUT SIGNALS

The agency found that the retailer's privacy portal was misconfigured so that opt-out requests, including those sent through its cookie banner, were not processed for 40 days, that it demanded more information than necessary for privacy requests, and that it required identity verification before opting consumers out of sale or sharing. Todd Snyder paid $345,178 and must correctly configure its opt-out mechanisms and train employees. It binds Todd Snyder, but the agency stated that a business remains responsible for its consent management vendor's failures. Test the banner and the downstream tag suppression after every release, and keep evidence of the tests.

California Privacy Protection Agency, Stipulated Final Order against American Honda Motor Co.

[136] · 12 March 2025 CALIFORNIA ENFORCEMENT DARK PATTERNS REJECT BUTTON ENFORCEMENT

The agency's first enforcement order found that Honda required excessive personal information and identity verification before honouring opt-out requests, offered a cookie management tool that did not present accept and decline choices in an equal way, obstructed authorised agents and shared consumer data with ad tech companies without CCPA-compliant contracts. Honda paid $632,500 and must simplify request handling, consult a user experience designer on its privacy request methods, train staff and revise contracting. It binds Honda but applies the symmetry rule in regulation section 7004 to cookie banners generally. Make Reject All as prominent as Accept All and never verify identity for an opt-out.

California Consumer Privacy Act as amended by the CPRA, Cal. Civ. Code 1798.100 et seq. (sections 1798.120, 1798.135, 1798.155)

[137] · 1 January 2025 CALIFORNIA LEGISLATION SALE SHARING OPT OUT SIGNALS CHILDREN

Section 1798.120 gives consumers the right to direct a business not to sell or share their personal information. Section 1798.135(a) requires a clear and conspicuous homepage link titled Do Not Sell or Share My Personal Information plus a Limit the Use of My Sensitive Personal Information link, or one consolidated link; 1798.135(b) lets a business omit the links if it honours an opt-out preference signal. Section 1798.120(c) requires opt-in under 16; section 1798.155 sets fines of up to $2,500 per violation and $7,500 for intentional violations or those involving the data of consumers known to be under 16, amounts the California Privacy Protection Agency adjusts for inflation ($2,663 and $7,988 from 1 January 2025). Route ad tech sharing, the link and the signal to one suppression path. Current text as amended by AB 3286.

CCPA Regulations, Cal. Code Regs. Title 11, Division 6, Chapter 1 (final text of 29 March 2023)

[138] · 29 March 2023 CALIFORNIA LEGISLATION SUPERSEDED DARK PATTERNS OPT OUT SIGNALS SALE SHARING

The 2023 text established the operative rules behind the statute: section 7004 bans dark patterns and requires symmetry in choice, so declining must take no more steps than accepting; sections 7013 to 7015 govern the Do Not Sell or Share link, the Limit the Use link and the Alternative Opt-out Link; section 7025 makes opt-out preference signals mandatory to process; section 7026 governs opt-out requests. It binds every business subject to the CCPA and its service providers and contractors. Use it to understand the reasoning behind current enforcement. Superseded as a document by the consolidated regulations text approved on 22 September 2025 and effective 1 January 2026.

Cal. Code Regs. Title 11, section 7025, Opt-Out Preference Signals

[139] · 29 March 2023 CALIFORNIA LEGISLATION OPT OUT SIGNALS BROWSER SIGNALS

Section 7025(b) requires a business that sells or shares personal information to process any opt-out preference signal sent in a commonly used format such as an HTTP header field or JavaScript object, and 7025(c) requires it to treat the signal as a valid opt-out for that browser or device and any consumer profile associated with it, including pseudonymous profiles, without demanding extra information. Section 7025(e) and (f) let a business drop the Do Not Sell or Share link only if it processes the signal frictionlessly: no fee, no changed experience, no pop-up or other interstitial content. It binds every CCPA business. Read Global Privacy Control before any tags fire. Under 7025(c)(6) displaying the signal's processing status is optional, so check the CPPA's updated regulations for any change from 1 January 2026.

People v. Sephora USA, Inc., California Attorney General CCPA settlement

[140] · 24 August 2022 CALIFORNIA ENFORCEMENT OPT OUT SIGNALS SALE SHARING ENFORCEMENT

The first public CCPA settlement found that allowing third-party tracking software on a website and app in exchange for advertising and analytics services is a sale of personal information, that Sephora failed to disclose the sale, ignored Global Privacy Control signals and did not cure within the 30-day period. Sephora paid $1.2 million and must state in its privacy policy that it sells data, honour GPC, align service provider contracts with the CCPA and report to the Attorney General. It binds Sephora but signals the position taken against every business using ad tech cookies. Treat GPC as an opt-out request from the first page load.

Javier v. Assurance IQ, LLC, No. 21-16351 (9th Cir.)

[141] · 31 May 2022 CALIFORNIA COURT DECISION PIXELS WIRETAP CONSENT

The Ninth Circuit held that CIPA section 631(a) requires the prior consent of all parties to a communication, so consent obtained after a session replay vendor has already begun recording does not defeat the claim, and reversed dismissal of a complaint alleging that ActiveProspect's TrustedForm recorded a website visitor's interactions before he agreed to the site's privacy policy. The memorandum is unpublished and not precedential. It applies to any operator whose recording, chat or form-capture vendor loads before consent. Delay session replay and similar scripts until an affirmative consent event, and keep a record of the consent timestamp.

United States: federal

14 documents, newest first.

Federal Trade Commission Act, Section 5, 15 U.S.C. 45

[142] · 19 September 2026 UNITED STATES (FEDERAL) LEGISLATION DARK PATTERNS PIXELS WIRETAP ENFORCEMENT

Section 5 of the FTC Act, 15 U.S.C. 45, empowers the Commission to prevent unfair or deceptive acts or practices in or affecting commerce, and it is the legal basis for every federal tracking-pixel, health-data and dark-pattern case on this page: a privacy policy or consent interface that misstates what tags do is deceptive, and sharing sensitive data without consent in a way consumers cannot avoid is unfair. It binds virtually every company in United States commerce, with exemptions for common carriers and certain non-profits. Write cookie disclosures so that every statement about tags and data sharing is literally true; the FTC needs no state privacy statute to act.

FTC v. Kochava Inc., stipulated final order banning sale of sensitive location data

[143] · 4 May 2026 UNITED STATES (FEDERAL) ENFORCEMENT HEALTH DATA CONSENT ENFORCEMENT

The Commission sued the data broker in the District of Idaho on 29 August 2022 under the unfairness prong of Section 5, alleging that it sold geolocation data from hundreds of millions of mobile devices that could track visits to reproductive health clinics, places of worship and shelters. The stipulated order, approved 2 to 0, prohibits Kochava and its subsidiary Collective Data Solutions from selling, licensing or sharing sensitive location data without affirmative express consent, and requires a sensitive location programme, consent verification, disclosure of recipients on request and scheduled deletion. It binds Kochava. Treat precise location collected through SDKs as sensitive data requiring opt-in.

FTC Policy Statement on COPPA and age verification technologies

[144] · 25 February 2026 UNITED STATES (FEDERAL) REGULATOR GUIDANCE CHILDREN CONSENT

Adopted 2 to 0, the statement announces that the Commission will not bring COPPA enforcement against an operator that collects personal information solely to verify age, provided the data is used only for that purpose, deleted promptly afterwards, not disclosed to third parties without written assurances, explained in clear notice to parents and children, secured reasonably and gathered through a reasonably accurate method. It remains in effect until final rule amendments on age verification are published or it is withdrawn, and the Commission intends to open a rule review. It applies to all COPPA operators. Age gates can use verification data without triggering consent if those conditions are met.

Salazar v. Paramount Global, No. 25-459 (U.S. Supreme Court), definition of consumer under the Video Privacy Protection Act

[145] · 26 January 2026 UNITED STATES (FEDERAL) COURT DECISION UNDER APPEAL PIXELS WIRETAP

The Supreme Court granted certiorari on 26 January 2026 on whether a person who subscribes to a non-audiovisual offering such as an email newsletter is a consumer under the Video Privacy Protection Act. The Sixth Circuit in Salazar v. Paramount and the D.C. Circuit in Pileggi require the goods or services to be audiovisual; the Second Circuit in Salazar v. NBA and the Seventh Circuit in Gardner v. Me-TV read consumer broadly. The decision will fix the class of plaintiffs able to sue over pixel disclosures of video viewing. Until judgment, do not send video titles with user identifiers to advertising platforms.

Popa v. Microsoft Corp., No. 24-14 (9th Cir.)

[146] · 26 August 2025 UNITED STATES (FEDERAL) COURT DECISION PIXELS WIRETAP

In a published opinion the Ninth Circuit affirmed dismissal for lack of Article III standing of wiretapping and intrusion claims based on Microsoft's Clarity session replay tool, which captured mouse movements, clicks, keystrokes, URLs and product browsing on a retailer's website. The court held that recording ordinary website interactions does not resemble a harm traditionally recognised at common law and is not highly offensive, comparing it to a shop assistant watching which aisles customers visit. The underlying claims were brought under Pennsylvania's wiretapping statute, not California's CIPA, but the standing reasoning binds federal courts across the Ninth Circuit and is now cited to dismiss session-replay claims generally. Keep sensitive fields masked and avoid capturing health, financial or identity data.

Solomon v. Flipps Media, Inc., No. 23-7597 (2d Cir.), Video Privacy Protection Act and the Meta Pixel

[147] · 1 May 2025 UNITED STATES (FEDERAL) COURT DECISION PIXELS WIRETAP

The Second Circuit adopted the ordinary person standard for personally identifiable information under the Video Privacy Protection Act and held that a Meta Pixel transmission of a Facebook ID together with an encoded video title is not PII, because an ordinary person could not use that code to identify a consumer's viewing habits without specialised knowledge. Dismissal was affirmed and the Supreme Court denied certiorari on 8 December 2025. It binds federal courts in New York, Connecticut and Vermont and deepens a split with circuits applying a broader reasonable foreseeability test. Pixel exposure on video pages remains live elsewhere, and the Supreme Court is reviewing who counts as a consumer.

Children's Online Privacy Protection Rule, 16 CFR Part 312, 2025 final amendments

[148] · 22 April 2025 UNITED STATES (FEDERAL) LEGISLATION CHILDREN CONSENT

Published in the Federal Register on 22 April 2025, effective 23 June 2025 and with a compliance date of 22 April 2026 for most provisions, the amended rule requires operators to obtain separate verifiable parental consent before disclosing children's personal information to third parties, including for targeted advertising, limits retention to what is reasonably necessary for a specific purpose, adds biometric and government identifiers to personal information, confines persistent identifiers collected under the support for internal operations exception to those activities, and requires neutral age screening on mixed audience sites. It binds operators of child-directed services and those with actual knowledge. Behavioural advertising to children now needs a separate consent.

HHS Office for Civil Rights, Use of Online Tracking Technologies by HIPAA Covered Entities and Business Associates

[149] · 26 June 2024 UNITED STATES (FEDERAL) REGULATOR GUIDANCE HEALTH DATA PIXELS WIRETAP

First issued on 1 December 2022 and revised in 2024, the bulletin states that regulated entities must configure tracking technologies on user-authenticated pages so that vendors use and disclose protected health information only as the Privacy Rule permits, with a business associate agreement in place, and that information entered on unauthenticated pages such as appointment schedulers or symptom checkers is also PHI. On 20 June 2024 the Northern District of Texas vacated the part treating an IP address combined with a visit to a page about a health condition as PHI; HHS is evaluating its next steps. It binds HIPAA covered entities and business associates. Keep ad tech off portals.

FTC Health Breach Notification Rule, 16 CFR Part 318, 2024 final amendments

[150] · 26 April 2024 UNITED STATES (FEDERAL) LEGISLATION HEALTH DATA PIXELS WIRETAP

Approved 3 to 2 and effective 60 days after Federal Register publication, the amended rule clarifies that a breach of security includes an unauthorised disclosure, not only a hacking incident, adds definitions of covered health care provider and health care services or supplies so that health apps and connected devices are covered as personal health record vendors, allows electronic notice, and requires notice to the Commission at the same time as consumers for breaches affecting 500 or more people, within 60 calendar days of discovery. It binds vendors of personal health records and related entities outside HIPAA. Sharing health data with an advertising pixel without authorisation is a notifiable breach.

FTC and HHS joint letters to hospital systems and telehealth providers on online tracking technologies

[151] · 20 July 2023 UNITED STATES (FEDERAL) REGULATOR GUIDANCE HEALTH DATA PIXELS WIRETAP

The Federal Trade Commission and the HHS Office for Civil Rights sent joint letters to approximately 130 hospital systems and telehealth providers warning that the Meta Pixel, Google Analytics and similar technologies on websites and apps may impermissibly disclose sensitive health data to third parties, citing HIPAA for covered entities and the FTC Act and Health Breach Notification Rule for everyone else. The letters reference the HHS bulletin of December 2022. They apply to health providers and to non-HIPAA health businesses alike. Inventory every tag on pages where users schedule appointments, search symptoms or log in, and remove those without a business associate agreement or consent.

United States v. Easy Healthcare Corp. (Premom), FTC enforcement action

[152] · 17 May 2023 UNITED STATES (FEDERAL) ENFORCEMENT HEALTH DATA PIXELS WIRETAP ENFORCEMENT

The Commission alleged that the Premom fertility app shared health data with AppsFlyer and Google through advertising and analytics SDKs, and sent device identifiers, precise location and social media data to the China-based analytics firms Umeng and Jiguang, contrary to privacy policy promises, and failed to notify users under the Health Breach Notification Rule. Easy Healthcare pays a $100,000 civil penalty plus $100,000 to Connecticut, the District of Columbia and Oregon, is barred from sharing health data for advertising, must obtain affirmative consent for other sharing, seek deletion by recipients and limit retention. It binds Easy Healthcare. Audit mobile SDKs with the same rigour as web pixels.

In the Matter of BetterHelp, Inc., FTC consent order

[153] · 2 March 2023 UNITED STATES (FEDERAL) ENFORCEMENT HEALTH DATA PIXELS WIRETAP ENFORCEMENT

The Commission alleged that the online counselling platform disclosed email addresses, IP addresses and intake questionnaire answers to Facebook, Snapchat, Criteo and Pinterest for advertising, including building lookalike audiences from people who had sought therapy, despite promising not to share health data. The order, finalised on 14 July 2023 by a 3 to 0 vote, requires $7.8 million in consumer refunds, bans sharing health data for advertising and retargeting, requires affirmative express consent before any disclosure to third parties, and mandates a privacy programme, deletion by recipients and a retention schedule. It binds BetterHelp. Match every pixel event against the promises in the privacy policy before it fires.

United States v. GoodRx Holdings, Inc., FTC enforcement action under Section 5 and the Health Breach Notification Rule

[154] · 1 February 2023 UNITED STATES (FEDERAL) ENFORCEMENT HEALTH DATA PIXELS WIRETAP ENFORCEMENT

The Commission's first Health Breach Notification Rule action alleged that GoodRx shared users' prescription medications and health conditions with Facebook, Google, Criteo and other advertising platforms through pixels and identifiers, used the data to build targeted advertising audiences, and never notified users of the unauthorised disclosures. GoodRx paid a $1.5 million civil penalty and is permanently barred from disclosing health information for advertising, must obtain affirmative express consent for other sharing, direct third parties to delete the data, limit retention and avoid dark patterns when seeking consent. It binds GoodRx but sets the template for every health-adjacent site. Treat pixel disclosures of health data as reportable breaches.

FTC staff report, Bringing Dark Patterns to Light

[155] · 15 September 2022 UNITED STATES (FEDERAL) REGULATOR GUIDANCE DARK PATTERNS CONSENT

The staff report groups dark patterns into four categories: misleading consumers and disguising advertisements, making subscription cancellation difficult, burying terms and hiding fees, and tricking consumers into sharing data through privacy choices designed to steer them toward the option that gives away the most personal information, including default settings that share viewing activity with third parties behind an easily missed notice. It is guidance on how the Commission reads Section 5 and applies to any consumer-facing interface. Use it as the design checklist for consent banners: equal weight for accept and decline, no pre-selected sharing, and no interface that treats closing a pop-up as consent.

United States: other states

24 documents, newest first.

Connecticut Public Act 25-113 (SB 1295), amendments to the Connecticut Data Privacy Act

[156] · 1 July 2026 CONNECTICUT LEGISLATION OPT OUT SIGNALS CHILDREN SALE SHARING

From 1 July 2026 the Act lowers the applicability threshold to controllers processing personal data of 35,000 or more consumers and covers any controller that sells personal data or processes sensitive data regardless of volume, adds neural, reproductive and gender-affirming health data to sensitive data, bars targeted advertising to or sale of data of consumers aged 13 to 17 without consent, and requires impact assessments and a right to question profiling decisions with significant effects. Opt-out preference signals must be honoured where the signal is affirmative, freely given and unambiguous. It binds controllers doing business in Connecticut. Re-run the scoping analysis, because many smaller publishers now fall inside the Act.

Indiana Consumer Data Protection Act, Ind. Code 24-15 (SEA 5 of 2023)

[157] · 1 January 2026 INDIANA LEGISLATION SALE SHARING

Effective 1 January 2026, the Act gives consumers the right to opt out of targeted advertising, sale of personal data and profiling, requires consent for sensitive data and requires a controller that sells data or engages in targeted advertising to disclose that fact and the means to opt out. It contains no universal opt-out signal requirement. It binds controllers conducting business in Indiana that process data of 100,000 or more consumers, or 25,000 with over 50 percent of revenue from sales. The Attorney General has exclusive enforcement authority, with a 30-day cure period and civil penalties of up to $7,500 per violation. A disclosed opt-out link is sufficient for Indiana.

Kentucky Consumer Data Protection Act, HB 15 of 2024 (Acts Chapter 72), KRS 367.3611 to 367.3627

[158] · 1 January 2026 KENTUCKY LEGISLATION SALE SHARING

Signed on 4 April 2024 and effective 1 January 2026, the Act gives consumers the right to confirm processing, correct, delete, obtain a copy and opt out of targeted advertising, the sale of data or profiling, and requires consent for sensitive data. It contains no universal opt-out signal requirement. It binds persons conducting business in Kentucky that process data of 100,000 or more consumers, or 25,000 with over 50 percent of revenue from sales. The Attorney General has exclusive enforcement authority with a 30-day cure period, civil penalties of up to $7,500 per violation and a consumer privacy fund. A disclosed opt-out link meets the requirement.

Rhode Island Data Transparency and Privacy Protection Act, R.I. Gen. Laws Chapter 6-48.1

[159] · 1 January 2026 RHODE ISLAND LEGISLATION SALE SHARING

Operative from 1 January 2026, the chapter gives customers under 6-48.1-5 the right to opt out of processing for targeted advertising, sale of personal data or profiling in furtherance of solely automated decisions, exercised by secure and reliable means established by the controller and described in its privacy notice; no universal opt-out mechanism is required. It binds controllers meeting the consumer-volume thresholds. Under 6-48.1-8 the Attorney General has sole enforcement authority, there is no private right of action and no cure period, and intentional disclosure in violation of the chapter carries $100 to $500 per disclosure in addition to general commercial law remedies. Publish the opt-out method in the notice.

Maryland Online Data Privacy Act of 2024, SB 541 (Chapter 455), Md. Code Com. Law 14-4601 et seq.

[160] · 1 October 2025 MARYLAND LEGISLATION OPT OUT SIGNALS CHILDREN SALE SHARING

Approved on 9 May 2024 and effective 1 October 2025, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling and requires controllers to honour an opt-out preference signal for these choices. It prohibits the sale of sensitive data outright, limits collection to what is reasonably necessary, and bars targeted advertising and sale of personal data to consumers the controller knows or should know are aged 13 to 17. A narrower provision on permitted-processing exceptions applies only to activity after 1 April 2026. It binds controllers processing data of 35,000 or more consumers, or 10,000 with 20 percent of revenue from sales. Suppress ad tech for known teenage users and honour Global Privacy Control for Maryland visitors.

California, Colorado and Connecticut joint investigative sweep on Global Privacy Control compliance

[161] · 9 September 2025 UNITED STATES (MULTI-STATE) ENFORCEMENT OPT OUT SIGNALS BROWSER SIGNALS ENFORCEMENT

The California Attorney General, the California Privacy Protection Agency and the Attorneys General of Colorado and Connecticut announced a coordinated investigative sweep of businesses that fail to honour Global Privacy Control, describing it as a browser setting or extension that automatically signals a request to stop selling or sharing personal information. The announcement cites the CCPA and the Colorado and Connecticut privacy laws and asks businesses to come into immediate compliance. It applies to any business selling or sharing data of residents of those states. Assume GPC processing is being tested from outside, and confirm it works across every domain and subdomain.

Minnesota Consumer Data Privacy Act, Minn. Stat. Chapter 325O (2024 Minn. Laws ch. 121, art. 5)

[162] · 31 July 2025 MINNESOTA LEGISLATION OPT OUT SIGNALS SALE SHARING

Enacted in 2024 Minnesota Laws chapter 121 and effective 31 July 2025, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and requires controllers to honour opt-out preference signals from the same date. It adds a right to question the result of profiling and a duty to keep a data inventory. It binds controllers that process data of 100,000 or more consumers, or 25,000 with 25 percent of revenue from sales. The Attorney General enforces with civil penalties of up to $7,500 per violation and a 30-day cure period that sunsets on 31 January 2026. Recognise Global Privacy Control for Minnesota visitors.

Tennessee Information Protection Act, Tenn. Code Ann. 47-18-3201 et seq. (Public Chapter 408 of 2023)

[163] · 1 July 2025 TENNESSEE LEGISLATION SALE SHARING

Effective 1 July 2025, the Act gives consumers the right to opt out of targeted advertising, sale of personal data and profiling and requires consent for sensitive data. It contains no universal opt-out signal requirement and provides an affirmative defence to a controller whose written privacy programme reasonably conforms to the NIST Privacy Framework. It binds controllers with more than $25 million in revenue that process data of 175,000 or more consumers, or 25,000 with over 50 percent of revenue from sales. The Attorney General enforces with a 60-day cure period and civil penalties of up to $7,500 per violation, trebled for wilful violations. Document the programme against NIST.

New Jersey Data Privacy Act, P.L.2023, c.266 (S332), N.J.S.A. 56:8-166.4 et seq.

[164] · 15 January 2025 NEW JERSEY LEGISLATION OPT OUT SIGNALS SALE SHARING

Approved on 16 January 2024 and effective 365 days later, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and requires controllers to honour opt-outs sent through a user-selected universal opt-out mechanism from six months after the effective date, that is 15 July 2025. It binds controllers that process data of 100,000 or more consumers, or 25,000 with revenue from sales. The Attorney General has sole enforcement authority, a 30-day cure notice applied only for the first 18 months after the effective date, and the Division of Consumer Affairs may adopt rules for the mechanism. Treat Global Privacy Control as an opt-out for New Jersey visitors.

Delaware Personal Data Privacy Act, 6 Del. C. Chapter 12D

[165] · 1 January 2025 DELAWARE LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 January 2025, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and from 1 January 2026 controllers must allow those opt-outs through an opt-out preference signal that is consumer friendly, requires an affirmative and unambiguous choice rather than a default, and lets the controller verify residency. It binds controllers that process data of 35,000 or more consumers, or 10,000 with 20 percent of revenue from sales, with the thresholds falling to 10,000 and 5,000 on 1 January 2027. The Attorney General enforces and may demand data protection assessments. Honour Global Privacy Control for Delaware visitors and revisit scope before 2027.

New Hampshire Expectation of Privacy Act, RSA Chapter 507-H (SB 255)

[166] · 1 January 2025 NEW HAMPSHIRE LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 January 2025, the chapter gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and RSA 507-H:6, V(a)(1)(B) requires controllers, not later than 1 January 2025, to accept opt-out preference signals sent through a platform, technology or mechanism that communicates the consumer's intent to opt out. It binds controllers meeting the consumer-volume thresholds. The Attorney General has exclusive enforcement authority, violations are unfair or deceptive practices under RSA 358-A:2, there is no private right of action, and the 60-day cure notice was mandatory only during 2025 and is discretionary after that. Recognise Global Privacy Control from day one for New Hampshire visitors.

Nebraska Data Privacy Act, LB 1074, Neb. Rev. Stat. 87-1101 to 87-1130

[167] · 1 January 2025 NEBRASKA LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 January 2025 and modelled on the Texas statute, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and requires controllers to honour opt-out requests sent through a technology such as a browser setting, browser extension or global device setting, with no separate later date for that duty. It binds any person conducting business in Nebraska that processes or sells personal data and is not a small business, with no volume threshold. The Attorney General enforces, may issue civil investigative demands and may request data protection assessments; a 30-day cure period applies. Treat Global Privacy Control as binding for Nebraska visitors.

Iowa Consumer Data Protection Act, Iowa Code Chapter 715D

[168] · 1 January 2025 IOWA LEGISLATION SALE SHARING

Enacted in 2023 Acts chapter 17 and effective 1 January 2025, the chapter requires controllers under 715D.4 to disclose clearly and conspicuously any sale of personal data or targeted advertising and how consumers can opt out, and to provide secure and reliable means for requests. It does not mandate acceptance of universal opt-out signals, and sensitive data requires notice and an opportunity to opt out rather than consent. It binds controllers meeting the consumer-volume thresholds. Under 715D.8 the Attorney General has exclusive enforcement authority, must give 90 days' written notice to cure, and may seek civil penalties of up to $7,500 per violation. Signal handling is optional here.

Montana Consumer Data Privacy Act, SB 384, Mont. Code Ann. 30-14-2801 et seq.

[169] · 1 October 2024 MONTANA LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 October 2024, the Act gives consumers the right to opt out of targeted advertising, sale of personal data and profiling, and requires controllers to honour opt-out preference signals sent through a consumer-friendly platform, technology or mechanism by 1 January 2025. The Attorney General has exclusive enforcement authority, there is no private right of action, and the 60-day notice and cure requirement terminated on 1 April 2026. It binds controllers doing business in Montana that meet the consumer-volume thresholds. Route Global Privacy Control to the same opt-out as the banner and expect no cure notice before enforcement from April 2026.

New York Attorney General, Website Privacy Controls: A Guide for Business

[170] · 15 July 2024 NEW YORK REGULATOR GUIDANCE CONSENT DARK PATTERNS REJECT BUTTON

After reviewing 13 high-traffic websites with about 75 million visitors in March 2024, the Office found privacy controls that did not work as described: marketing and advertising tags stayed active after visitors disabled them, most often because tags were uncategorised or miscategorised in the consent management tool, hard-coded outside it, or because the consent tool was not passing opt-out signals to the tag manager. The guide states that New York's consumer protection law requires privacy representations to be truthful, warns that Accept All buttons must not imply cookies deploy only on click, and asks for equal-weight accept and decline options. It applies to any business serving New York consumers.

Colorado Attorney General, Universal Opt-Out Mechanism list and Colorado Privacy Act Rules, 4 CCR 904-3

[171] · 1 July 2024 COLORADO REGULATOR GUIDANCE OPT OUT SIGNALS BROWSER SIGNALS

The Department of Law maintains the public list of recognised universal opt-out mechanisms under C.R.S. 6-1-1306(1)(a)(IV) and Rule 5.07 of the Colorado Privacy Act Rules, 4 CCR 904-3, Part 5. Global Privacy Control is the only mechanism on the list, and controllers must honour it from 1 July 2024 as an opt-out from sale and from targeted advertising; the list does not exclude other mechanisms that meet the rules. It binds every controller subject to the Act. Implement GPC as a header and JavaScript signal, and treat a signal received while a consumer is logged in as applying to the account.

Texas Data Privacy and Security Act, Tex. Bus. & Com. Code Chapter 541 (HB 4)

[172] · 1 July 2024 TEXAS LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 July 2024 and enforced by the Attorney General's Consumer Protection Division, the Act gives consumers the right to opt out of targeted advertising, sale of personal data and profiling, and from 1 January 2025 section 541.055(e) requires controllers to honour targeted advertising and sale opt-outs sent through a technology such as a browser setting, browser extension or global device setting. It binds any person conducting business in Texas, or producing a product or service consumed by Texas residents, that processes or sells personal data and is not a small business, with no volume threshold. A 30-day cure period applies and civil penalties reach $7,500 per violation. Honour Global Privacy Control for Texas visitors; head counts do not scope you out.

Oregon Consumer Privacy Act, ORS 646A.570 to 646A.589 (SB 619)

[173] · 1 July 2024 OREGON LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 July 2024, the Act gives consumers rights to opt out of targeted advertising, sale of personal data and profiling, and from 1 January 2026 controllers must honour opt-out signals that meet the statute's technical requirements, with Global Privacy Control cited by the Department of Justice as an example. The Department publishes quarterly and annual enforcement reports and issued a one-year report in August 2025. It binds controllers doing business in Oregon that process data of 100,000 or more consumers, or 25,000 or more where more than 25 per cent of annual gross revenue comes from selling personal data; motor vehicle manufacturers are covered with no threshold. The notice-and-cure period ended on 1 January 2026, so treat Oregon as a signal-mandatory state with no cure right and answer Department inquiries as enforcement, not as a warning.

Washington My Health My Data Act, RCW Chapter 19.373 (HB 1155)

[174] · 31 March 2024 WASHINGTON LEGISLATION HEALTH DATA CONSENT PIXELS WIRETAP

Effective 31 March 2024 for regulated entities and 30 June 2024 for small businesses, RCW 19.373.030 prohibits collecting or sharing consumer health data without the consumer's affirmative consent or a necessity to provide a requested product or service, RCW 19.373.070 makes any sale of consumer health data unlawful without a separate signed authorisation, and RCW 19.373.080 bans geofencing around in-person health services. Consumer health data includes inferences drawn from non-health data. It binds any entity doing business in Washington or targeting Washington consumers; under RCW 19.373.090 a violation is a per se Consumer Protection Act breach with a private right of action. Gate pixels on health pages behind opt-in consent.

Washington Attorney General, guidance on the My Health My Data Act

[175] · 31 March 2024 WASHINGTON REGULATOR GUIDANCE HEALTH DATA CONSENT

The Attorney General's guidance states that the Act, signed on 27 April 2023, is the first privacy law to protect health data outside HIPAA, that all persons must comply with the geofencing section from 23 July 2023, non-small businesses with sections 4 to 9 from 31 March 2024 and small businesses from 30 June 2024, and that regulated entities must prominently publish a link to a consumer health data privacy policy on their homepage. It gives a retailer's pregnancy prediction score derived from purchases as an example of covered inferences. It applies to any entity in scope of the Act. Publish the separate policy link.

Utah Consumer Privacy Act, Utah Code 13-61-101 et seq. (SB 227)

[176] · 31 December 2023 UTAH LEGISLATION SALE SHARING

Effective 31 December 2023, the Act gives consumers under 13-61-201 the right to opt out of targeted advertising and the sale of personal data, requires a clear notice of that right, and requires only notice and an opportunity to opt out, rather than consent, before processing sensitive data. It contains no universal opt-out signal requirement and no right to opt out of profiling. It binds controllers with $25 million or more in annual revenue that also meet the consumer-volume thresholds. The Attorney General enforces on referral from the Division of Consumer Protection, with a 30-day cure period and penalties of up to $7,500 per violation. A conventional opt-out link suffices.

Colorado Privacy Act, SB 21-190, C.R.S. 6-1-1301 et seq.

[177] · 1 July 2023 COLORADO LEGISLATION OPT OUT SIGNALS SALE SHARING

Signed on 7 July 2021 and effective 1 July 2023, the Act gives consumers the right to opt out of targeted advertising, sale of personal data and certain profiling, and C.R.S. 6-1-1306(1)(a)(IV) requires controllers to honour opt-outs sent through a universal opt-out mechanism meeting the Attorney General's technical specifications, with that duty operative from 1 July 2024. It binds controllers doing business in Colorado that process data of 100,000 or more consumers a year, or 25,000 with revenue from sales. The 60-day cure period expired on 1 January 2025. Recognise Global Privacy Control as an opt-out from targeted advertising, not only from sale.

Connecticut Data Privacy Act, Conn. Gen. Stat. 42-515 et seq. (Public Act 22-15)

[178] · 1 July 2023 CONNECTICUT LEGISLATION OPT OUT SIGNALS SALE SHARING

Effective 1 July 2023, the Act grants rights to opt out of targeted advertising, sale of personal data and profiling, and from 1 January 2025 every controller subject to it must honour opt-out preference signals sent by consumers. Violations are enforceable by the Attorney General under the Connecticut Unfair Trade Practices Act with civil penalties of up to $5,000 per wilful violation, alongside injunctive relief, restitution and disgorgement; the Attorney General publishes annual enforcement reports. It binds controllers meeting the consumer-volume thresholds. Map the banner's opt-out to both targeted advertising and sale, and honour Global Privacy Control without a confirmation step. Amended by Public Act 25-113 from 1 July 2026.

Virginia Consumer Data Protection Act, Va. Code 59.1-575 to 59.1-584

[179] · 1 January 2023 VIRGINIA LEGISLATION SALE SHARING CONSENT

Effective 1 January 2023, the Act gives consumers the right under 59.1-577 to opt out of targeted advertising, sale of personal data and profiling in furtherance of decisions that produce legal or similarly significant effects, requires under 59.1-578(D) a clear and conspicuous disclosure of that processing and of the manner in which a consumer may opt out where a controller sells data or engages in targeted advertising, and requires consent for sensitive data. It does not require controllers to honour universal opt-out signals. It binds persons conducting business in Virginia or targeting its residents that control or process data of 100,000 or more consumers, or 25,000 with over 50 percent of gross revenue from the sale of personal data. The Attorney General enforces with a 30-day cure period and civil penalties of up to $7,500 per violation. Offer an explicit opt-out link covering cookie-based targeted advertising.

Rest of world

53 documents, newest first.

Exposure draft, Privacy Amendment (Personal Data Protection) Bill 2026 (tranche 2 reforms)

[180] · 31 August 2026 AUSTRALIA PROPOSAL PROPOSED CONSENT CONSENT OR PAY SALE SHARING

The Attorney-General's Department released the tranche 2 exposure draft, with the Bill and an accompanying consultation paper, in 2026. It would define consent as voluntary, informed, current, specific and unambiguous, extend collection to information generated or inferred, give identifiers and location or behavioural data as examples of information that is personal where reasonably linkable, make precise geolocation tracking data sensitive, add a fair and reasonable test weighing the child's best interests, require consent before trading personal information, and retain a simple opt-out from direct marketing, including online behavioural advertising based on personal information, while keeping flexibility for ad-supported services. It is not law. Model banner changes now against the proposed standard.

Bill C-36, Protecting Privacy and Consumer Data Act

[181] · 15 June 2026 CANADA PROPOSAL PROPOSED CONSENT CHILDREN ENFORCEMENT

Bill C-36 would enact the Protecting Privacy and Consumer Data Act to replace Part 1 of PIPEDA, keeping a meaningful consent standard in plain language with expanded exceptions for business activities, research and de-identification, confirming that de-identified information remains personal information, requiring particular attention to children's information, and creating administrative penalties of up to the greater of $10 million or 3 percent of global revenue, with offences up to the greater of $25 million or 5 percent. It received first reading in the House of Commons on 15 June 2026 and has not progressed further. Track the bill, but change nothing in consent flows until it passes.

PPC Guidelines on the Act on the Protection of Personal Information (General Rules edition), section 2-8 on personally referable information

[182] · 14 June 2026 JAPAN REGULATOR GUIDANCE CONSENT SALE SHARING

The Commission's general guidelines, first issued in November 2016 and last partially revised in June 2026, define personally referable information as information that does not identify an individual by itself but can identify one when combined with other data, and explain the Article 31 confirmation and record-keeping duties when such information is provided to a third party that will treat it as personal data. They bind no one directly but state the standard the Commission applies in supervision. Use section 2-8 to decide, for each tag on the site, whether the recipient will link the identifier to a person and therefore whether the recipient's consent must be confirmed first.

Commissioner-initiated investigations into Medmate Australia and Monash IVF (tracking pixels), [2026] AICmr 40 and 41

[183] · 11 June 2026 AUSTRALIA ENFORCEMENT PIXELS WIRETAP HEALTH DATA ENFORCEMENT

The Privacy Commissioner determined on 11 June 2026 that a telehealth provider and a fertility provider breached APP 3.3 by collecting sensitive health information through third-party tracking pixels without consent, APP 5.1 by failing to notify, and APP 7.1 by using sensitive information for direct marketing without consent. Monash IVF ran seven pixels from 30 July 2012 to 9 December 2024 and Medmate from April 2021 to 9 December 2024; neither ran a privacy impact assessment, and the argument that data sent straight to a platform was not collected was rejected. The determinations bind the two entities. Remove or gate pixels on any page revealing a health topic.

OAIC exposure draft of the Children's Online Privacy Code

[184] · 31 March 2026 AUSTRALIA PROPOSAL PROPOSED CHILDREN CONSENT

The draft Code, released on 31 March 2026 for consultation to 5 June 2026, would apply to APP entities providing social media, relevant electronic services or designated internet services likely to be accessed by children, other than health services. It requires collection, use and disclosure to be consistent with the child's best interests, and limits direct marketing to children: non-sensitive information may be used only with consent and consistently with the child's best interests, while sensitive information may be used only if it was collected from the child or a person with parental responsibility, an opt-out mechanism is offered, and the use is consistent with the child's best interests. It also requires age-appropriate notices and a deletion right. The final Code must be registered by 10 December 2026. Inventory trackers on child-accessible services now and plan to disable advertising and profiling cookies for those audiences.

Vietnam Personal Data Protection Law (Law 91/2025/QH15), successor to Decree 13/2023/ND-CP

[185] · 1 January 2026 VIETNAM LEGISLATION CONSENT OPT OUT SIGNALS ENFORCEMENT SECONDARY SOURCE

The Law, passed on 26 June 2025 and in force from 1 January 2026, carries forward the consent standard of Decree 13/2023/ND-CP (in force from 1 July 2023): consent must be voluntary, specific, informed and given per purpose, and silence is not consent. It adds fines of up to 5 percent of the previous year's revenue for unlawful cross-border transfers and up to ten times the revenue gained from unlawful sale of personal data, in each case the higher of that figure and VND 3 billion, and requires social network and online service providers to offer a do-not-track option and opt-outs for cookies and tracking. It binds domestic and foreign controllers processing Vietnamese residents' data. Present cookie consent per purpose and provide a working tracking opt-out.

Digital Personal Data Protection Rules, 2025 (consent notice, Consent Managers, verifiable parental consent, phased commencement)

[186] · 13 November 2025 INDIA LEGISLATION APPLIES FROM A FUTURE DATE CONSENT CHILDREN OTHER

The Rules, notified as G.S.R. 846(E) on 13 November 2025, bring the Act into force in phases measured from publication in the Official Gazette: the Data Protection Board provisions (rules 17 to 21) at once, the Consent Manager registration rule after twelve months in November 2026, and the remaining rules, including consent notices, children's verifiable consent and breach notification, after eighteen months in May 2027. They prescribe the content of a consent notice, the registration conditions for Consent Managers, and the methods for verifying a parent's identity and age. They bind every data fiduciary within the Act's scope. Schedule the consent banner rebuild and children's age-assurance design for completion before the eighteen-month date and plan integration with registered Consent Managers.

Israel Protection of Privacy Law 5741-1981 as amended by Amendment 13

[187] · 14 August 2025 ISRAEL LEGISLATION CONSENT ENFORCEMENT

Amendment 13, in force from 14 August 2025, modernises the 1981 law by widening the definitions of personal and sensitive data, requiring that a request for information state whether provision is mandatory, the purposes, recipients and rights, giving the Privacy Protection Authority powers to audit, order and impose administrative fines, and extending duties to outsourced holders processing data for a controller. Direct marketing databases remain subject to the database registration and opt-out rules. Practitioners should present cookie notices with the statutory disclosure items and maintain an easy opt-out from direct marketing profiles built from tracking data.

PPC Guidelines Q&A on the APPI (updated edition)

[188] · 1 July 2025 JAPAN REGULATOR GUIDANCE CONSENT SALE SHARING

The Commission's consolidated Q&A, last updated on 1 July 2025, answers practical questions under the guidelines, including how cookies and advertising identifiers are treated, when browsing data becomes personally referable information, what form the recipient's consent must take under Article 31, and how the providing business may confirm and record that consent. It binds no one but reflects the Commission's supervisory reading and is cited in inspections. Keep the Q&A numbers for cookies and Article 31 in the tag governance file, and use its examples to set the consent wording that advertising partners must show before matching identifiers to user accounts.

Privacy Act 1988 (Cth), Australian Privacy Principles 3, 5, 6, 7 and 8 (Compilation No. 103)

[189] · 10 June 2025 AUSTRALIA LEGISLATION CONSENT HEALTH DATA TRANSFERS

The compilation in force from 10 June 2025 defines personal information as information about an identified or reasonably identifiable individual, defines consent as express or implied, requires consent to collect sensitive information (APP 3.3), notification at or before collection (APP 5), use and disclosure only for the primary purpose or with consent (APP 6), a simple means of opting out of direct marketing (APP 7) and reasonable steps for overseas disclosures (APP 8). It binds APP entities, broadly organisations with annual turnover above $3 million and all health service providers. Map every pixel and cookie to these principles and obtain express consent before any tracker can capture sensitive information.

Mexico Ley Federal de Protección de Datos Personales en Posesión de los Particulares (2025)

[190] · 21 March 2025 MEXICO LEGISLATION CONSENT OTHER

The new federal law, published on 20 March 2025 and in force from 21 March 2025, replaces the 2010 statute, moves supervision from INAI to the Secretaría Anticorrupción y Buen Gobierno, keeps tacit consent for non-sensitive data where the privacy notice is provided and the person does not object, requires express consent for sensitive and financial data (written for sensitive data), and subjects transfers to third parties to the consent form that applies to the data concerned, with the statutory exceptions for group companies, legal requirements and contracts in the person's interest. The privacy notice must be available before collection, and the regulations continue to require disclosure of cookies, web beacons and similar technologies and how to disable them. It binds private-sector controllers in Mexico. Keep the cookie disclosure in the notice and offer an objection route.

Personal Information Protection and Electronic Documents Act (PIPEDA), s. 6.1 and Schedule 1 Principle 4.3

[191] · 4 March 2025 CANADA LEGISLATION CONSENT OTHER

PIPEDA requires knowledge and consent for the collection, use and disclosure of personal information (Schedule 1, Principle 4.3), and s. 6.1 makes consent valid only where it is reasonable to expect the individual understands the nature, purpose and consequences of the processing. It binds organisations that collect personal information in the course of commercial activity, including foreign operators with a real and substantial connection to Canada. Treat identifiers set by cookies and tracking pixels as personal information, decide whether express or implied consent fits each purpose, and document that analysis; Bill C-36 would replace Part 1 of PIPEDA if enacted.

Regulations on Network Data Security Management (State Council Decree 790), Articles 21, 22 and 42

[192] · 1 January 2025 CHINA LEGISLATION CONSENT OPT OUT SIGNALS CHILDREN

Published on 30 September 2024 and in force from 1 January 2025, the regulations require network data handlers to publish processing rules in a prominent place, to collect only what is necessary, to obtain separate consent for sensitive information and parental consent for children under 14, and not to repeat a consent request after refusal. Article 42 requires platform providers that push information by automated decision-making to offer an easy-to-understand, easy-to-reach switch to turn off personalised recommendation and to let users delete their tags. They bind network data handlers processing Chinese individuals' data. Remove repeated consent prompts and place the personalisation switch within the first layer of settings.

Privacy and Other Legislation Amendment Act 2024 (No. 128, 2024)

[193] · 10 December 2024 AUSTRALIA LEGISLATION CHILDREN ENFORCEMENT OTHER

The first tranche of Privacy Act reform received assent on 10 December 2024. It creates a statutory tort for serious invasions of privacy from 10 June 2025, requires the OAIC to register a Children's Online Privacy Code by 10 December 2026, requires privacy policies to disclose automated decision-making from 10 December 2026, gives the Commissioner infringement and compliance notice powers from 11 December 2024, and adds tiered civil penalties. It binds all APP entities. Update privacy policies for the automated decision-making disclosure before the deadline, and plan for the Children's Code where a service is likely to be accessed by children.

OAIC guidance: Tracking pixels and privacy obligations

[194] · 4 November 2024 AUSTRALIA REGULATOR GUIDANCE PIXELS WIRETAP HEALTH DATA CONSENT

The Commissioner explains that a third-party pixel collects IP address, location, URLs and transaction data and sends it to an advertising platform, engaging APP 1, 3, 5, 6, 7 and 8. Organisations must understand the pixel before deployment, review the provider's terms, run a privacy impact assessment, configure it to collect the minimum, avoid site-wide placement, prevent capture of sensitive information without express opt-in consent, notify users through banners or notices covering the pixel providers and any overseas recipients, and offer a simple opt-out from targeted advertising. It applies to every APP entity using pixels. Treat the list as a pre-deployment checklist and revisit it at each review cycle.

Indonesia Law No. 27 of 2022 on Personal Data Protection

[195] · 17 October 2024 INDONESIA LEGISLATION CONSENT ENFORCEMENT

The law, enacted on 17 October 2022 with a two-year transition that ended on 17 October 2024, requires explicit consent, in writing or recorded form, as the primary basis for processing, requires that a consent request be presented clearly and separately from other matters and be withdrawable, and gives data subjects rights to object to profiling and automated decisions, with administrative fines of up to 2 percent of annual revenue. A dedicated supervisory authority and implementing regulations were still being established after the transition ended. It binds controllers in Indonesia and foreign controllers whose processing has legal effect there. Run advertising and analytics cookies on explicit, separately presented consent.

ANPD Guia orientativo: Hipóteses legais de tratamento de dados pessoais, legítimo interesse

[196] · 2 February 2024 BRAZIL REGULATOR GUIDANCE ANALYTICS EXEMPTION STRICTLY NECESSARY CONSENT

The guide sets out how the ANPD expects controllers to rely on legitimate interest under Article 7, IX and Article 10 of the LGPD: a documented balancing test covering the legitimacy of the interest, the necessity of the processing, the impact on data subjects and their legitimate expectations, with a model assessment in the annex. Legitimate interest cannot be used for sensitive data and has restricted use in the public sector. It applies to any controller invoking the basis, including for analytics or necessary cookies. Complete and retain a balancing test before setting any cookie without consent, and provide transparency and an objection route for the processing.

Commission d'accès à l'information, Lignes directrices 2023-1 sur les critères de validité du consentement

[197] · 31 October 2023 QUEBEC REGULATOR GUIDANCE CONSENT DARK PATTERNS REJECT BUTTON

The Commission's guidelines set eight criteria for valid consent under the public and private sector Acts: manifest, free, informed, given for specific purposes, granular, understandable, temporary, and presented separately from any other information when requested in writing. Consent is not free where refusal takes disproportionate effort compared with acceptance or where visual emphasis such as colour or font size steers the choice, and implied consent requires a genuine opportunity to refuse. The guidelines bind no one directly but state how the Commission will assess consent in investigations. Design banners with equal accept and refuse paths, one purpose per toggle, and a separate consent request for each tracker category.

Act respecting the protection of personal information in the private sector (Law 25 amendments), s. 8.1 and s. 9.1

[198] · 22 September 2023 QUEBEC LEGISLATION CONSENT STRICTLY NECESSARY OTHER

Section 8.1, in force since 22 September 2023, requires an enterprise collecting personal information through technology that can identify, locate or profile a person to inform the person first of that technology and of the means available to activate those functions, which the Commission d'accès à l'information reads as requiring such functions to be off by default and switched on only by the individual. Section 9.1 requires the highest confidentiality settings by default but excludes cookies from that specific rule. The Act binds every enterprise handling Quebec residents' information. Configure analytics, advertising and geolocation trackers as opt-in for Quebec visitors and describe the activation controls in the banner.

Personal Information Protection Act (PIPA), as amended with effect from 15 September 2023

[199] · 15 September 2023 SOUTH KOREA LEGISLATION CONSENT ENFORCEMENT

The amended Act, in force from 15 September 2023, unifies the rules for online service providers and other controllers, requires consent to collect personal information unless another basis applies, requires separate consent for marketing and third-party provision, requires the privacy policy to describe the installation, operation and refusal of automatic collection devices such as cookies, adds a right to refuse automated decisions, and raises the penalty surcharge under Article 64-2 to up to 3 percent of total sales, calculated net of sales unrelated to the violation. It binds domestic and foreign operators processing Korean residents' data. Provide granular opt-in consent for behavioural advertising cookies, keep the cookie section of the privacy policy current, and expect PIPC audits of consent screens.

Saudi Arabia Personal Data Protection Law (Royal Decree M/19 as amended by M/148) and Implementing Regulations

[200] · 14 September 2023 SAUDI ARABIA LEGISLATION CONSENT EMAIL MARKETING

The PDPL, amended by Royal Decree M/148 of 5/9/1444 AH (March 2023) and in force 720 days after publication under Article 43, requires a lawful basis for processing, consent that can be withdrawn at any time (Article 5), and a privacy policy made available before collection (Article 12), and its Implementing Regulations allow direct marketing only with the data subject's consent, with the sender identified and a way to stop the messages that is as easy as giving consent (Article 29). Fines reach SAR 5 million and may be doubled for a repeat violation (Article 36), with the competent authority supervising, and parties outside the Kingdom processing residents' data are bound (Article 2). Treat advertising cookies as consent-based and include a marketing opt-out in the banner's second layer.

Digital Personal Data Protection Act, 2023, sections 6, 9 and the Schedule

[201] · 11 August 2023 INDIA LEGISLATION APPLIES FROM A FUTURE DATE CONSENT CHILDREN ENFORCEMENT

The Act, assented to on 11 August 2023, requires consent that is free, specific, informed, unconditional and unambiguous with a clear affirmative action, limited to necessary data and withdrawable with the same ease (section 6), manageable through a registered Consent Manager. Section 9 requires verifiable parental consent for anyone under 18 and prohibits tracking, behavioural monitoring and targeted advertising directed at children; the Schedule sets penalties up to INR 250 crore for security failures and INR 200 crore for children's obligations. It binds data fiduciaries processing digital personal data in India or serving India, phased in under the 2025 Rules. Remove behavioural tracking from services used by minors.

Telecommunications Business Act, Article 27-12 (external transmission rule) and MIC guidance

[202] · 16 June 2023 JAPAN LEGISLATION CONSENT STRICTLY NECESSARY OTHER

The 2022 amendment to the Telecommunications Business Act, in force from 16 June 2023, requires operators of messaging services, social networks, search services and websites delivering news or information to inform users before a browser or app sends user information to an external party, by notice or easily accessible publication, by consent, or by an opt-out. The disclosure must state the information sent, the recipient and the purpose of use. Information necessary to deliver the service and identifiers sent to the operator itself are exempt; e-commerce sites and personal blogs are outside scope. Publish an external transmission page listing every third-party tag, recipient and purpose, linked from the banner.

Nigeria Data Protection Act 2023 and NDPC General Application and Implementation Directive 2025

[203] · 12 June 2023 NIGERIA LEGISLATION CONSENT ENFORCEMENT

The Act, signed on 12 June 2023, establishes the Nigeria Data Protection Commission in place of the Data Protection Bureau, requires consent that is freely given, specific, informed and unambiguous with the controller bearing the burden of proof, gives a right to object to direct marketing, and empowers the Commission to impose penalties of up to the greater of NGN 10 million and 2 per cent of annual gross revenue for controllers of major importance (the greater of NGN 2 million and 2 per cent for others). The Commission's General Application and Implementation Directive of 2025 adds detailed rules on consent design, cookie notices and privacy policies. It binds controllers in Nigeria and foreign controllers processing the data of data subjects in Nigeria. Deploy a consent banner with a documented consent log and a marketing objection route.

Enunciado CD/ANPD nº 1/2023 on the processing of children's and adolescents' personal data

[204] · 22 May 2023 BRAZIL REGULATOR GUIDANCE CHILDREN CONSENT

The statement interprets Article 14 of the LGPD to allow children's and adolescents' data to be processed under any legal basis in Articles 7 and 11, not only specific parental consent, provided the best interest of the minor prevails and is assessed in each case. It binds the ANPD's own enforcement posture and applies to any controller handling minors' data, including operators of sites and apps used by children. Do not rely on it to run behavioural advertising cookies on child-directed services; document a best-interest assessment for any tracker on such services, and default to no tracking where the assessment is unclear.

Act on the Protection of Personal Information (APPI), Article 2(7) and Article 31 (personally referable information)

[205] · 1 April 2023 JAPAN LEGISLATION CONSENT SALE SHARING PIXELS WIRETAP

Since the 2020 amendment took effect on 1 April 2022, Article 31 prohibits a business from providing personally referable information, such as cookie identifiers and browsing history that do not identify a person on their own, to a third party expected to link it to an identified individual, unless the business has confirmed that the recipient obtained the individual's consent and recorded that confirmation. The consolidated English text is current to 1 April 2023. It binds every business handling personal information, including foreign operators serving Japanese users. Where a pixel or SDK sends identifiers to an advertising platform that matches them to accounts, verify and record the platform's consent first.

OAIC guidance: Direct marketing (APP 7)

[206] · 10 March 2023 AUSTRALIA REGULATOR GUIDANCE EMAIL MARKETING OPT OUT SIGNALS CONSENT

The guidance confirms that APP 7 covers targeted online marketing whenever personal information is used or disclosed to deliver it, alongside email and post, while communications covered by the Spam Act 2003 and the Do Not Call Register Act 2006 sit outside APP 7. Organisations must provide a simple means of opting out, draw attention to it in each communication where practicable, and stop using or disclosing the information within a reasonable period after a request. It applies to organisations covered by the Privacy Act. Link the advertising toggle in the banner to a working suppression mechanism so that an opt-out from targeted advertising is honoured across ad platforms.

PIPC sanctions Meta for refusing service to users who declined behavioural data collection

[207] · 9 March 2023 SOUTH KOREA ENFORCEMENT COOKIE WALLS CONSENT ENFORCEMENT

The Commission fined Meta KRW 6.6 million, for making acceptance of behavioural information collection for customised advertising a condition of using the service, finding under article 39-3(3) of the Act that behavioural information gathered from third-party sites and apps is not the minimum personal information necessary to provide the service. The decision binds the company and states the Commission's position that access to a social network cannot be conditioned on advertising consent. Do not deploy cookie walls or consent-or-leave designs for Korean users, and keep the service usable when advertising consent is withheld.

Resolução CD/ANPD nº 4/2023, Regulamento de dosimetria e aplicação de sanções administrativas

[208] · 24 February 2023 BRAZIL LEGISLATION ENFORCEMENT

The regulation sets the method by which the ANPD calculates the sanctions in Article 52 of the LGPD, classifying infractions as light, medium or serious, applying a percentage of revenue within the 2 percent and R$50,000,000 ceilings, and listing aggravating and mitigating factors such as recurrence, good faith, cooperation and adoption of a compliance programme. It binds every processing agent subject to LGPD sanctions, which became applicable on 1 August 2021. Since the first fine in July 2023 the authority has applied it consistently. Keep evidence of consent design, records of processing and remediation steps to support the mitigating factors if a cookie complaint escalates.

ANPD Guia orientativo: Cookies e proteção de dados pessoais

[209] · 18 October 2022 BRAZIL REGULATOR GUIDANCE CONSENT REJECT BUTTON COOKIE WALLS

The guide classifies cookies as necessary or non-necessary, first or third party, session or persistent, and pairs them with legal bases: consent for non-necessary cookies and legitimate interest for necessary ones, with legitimate interest unsuitable for behavioural profiling and advertising. A first-layer banner must offer a reject option as visible as the accept button and a link to the cookie policy, a second layer must give per-category choices with non-necessary cookies off by default, and pre-ticked boxes, hidden refuse buttons, missing revocation and cookie walls are listed as non-compliant. It is advisory but states how the authority reads the LGPD. Use it as the specification for Brazilian banners.

PIPC sanctions Google and Meta for collecting behavioural information without consent

[210] · 14 September 2022 SOUTH KOREA ENFORCEMENT CONSENT ENFORCEMENT DARK PATTERNS

The Commission imposed penalty surcharges of KRW 69.2 billion on Google and KRW 30.8 billion on Meta for collecting users' behavioural information from third-party websites and apps and using it for customised advertising without clearly informing users or obtaining consent, finding that Google hid the setting behind a default-on option and that Meta buried the disclosure in its terms. The decision binds the two companies and set the largest surcharges under the Act at the time. Corrective orders required an easy, clear consent screen for third-party behavioural data. Treat any cross-site behavioural data flow into Korean advertising accounts as requiring separate, explicit consent presented outside the terms of service.

Bill C-27, Digital Charter Implementation Act, 2022 (Consumer Privacy Protection Act)

[211] · 16 June 2022 CANADA PROPOSAL HISTORICAL CONSENT OTHER

Bill C-27 would have replaced Part 1 of PIPEDA with the Consumer Privacy Protection Act, adding a statutory consent standard, a business-activities exception, rules for de-identified data, administrative penalties and a tribunal, together with the Artificial Intelligence and Data Act. It died on the Order Paper when Parliament was prorogued on 6 January 2025 after committee study but before third reading. Practitioners still meet references to the CPPA in vendor documentation and privacy programmes. Treat those references as historical and map obligations to PIPEDA as it stands and to Bill C-36, which the government tabled on 15 June 2026 as the successor.

Joint investigation into location tracking by the Tim Hortons app (PIPEDA Findings 2022-001)

[212] · 1 June 2022 CANADA ENFORCEMENT CONSENT ENFORCEMENT PIXELS WIRETAP

The federal, Quebec, Alberta and British Columbia commissioners found that the app collected granular location data every few minutes while closed, contrary to statements that collection occurred only when the app was open, and that the data was gathered for targeted advertising but never used for that purpose, so consent was invalid and the collection lacked an appropriate purpose. The finding binds the operator and signals the offices' approach to tracking statements generally. The company was told to delete the location data, build a privacy management programme with impact assessments, and report within nine months. Align every tracking statement in a banner or policy with what the code actually does.

Personal Data Protection Act B.E. 2562 (2019), sections 19, 23 and 82 to 90

[213] · 1 June 2022 THAILAND LEGISLATION CONSENT DARK PATTERNS ENFORCEMENT

The Act, fully in force since 1 June 2022 after two deferrals, requires consent under section 19 to be explicit, in writing or electronic form, requested separately from other matters in a clear and accessible format without deceptive conditions, and withdrawable as easily as it was given, and section 23 requires a privacy notice before or at collection. Administrative fines reach THB 5 million and criminal penalties include imprisonment of up to one year for certain sensitive-data offences. It binds controllers in Thailand and foreign controllers offering goods or services to people in Thailand. Use a separate, granular cookie consent screen and keep necessary cookies outside the consent request.

Provisions on the Management of Algorithmic Recommendations in Internet Information Services, Articles 17, 18 and 21

[214] · 1 March 2022 CHINA LEGISLATION OPT OUT SIGNALS CHILDREN DARK PATTERNS

The provisions, in force from 1 March 2022, require algorithmic recommendation providers to offer users an option not targeted at their personal characteristics or a convenient way to turn the recommendation service off, to let users select or delete the user tags used for recommendations, to protect minors from harmful or addictive content, and not to use algorithms to apply unreasonable differential prices or transaction conditions based on user characteristics. They bind providers of algorithmic recommendation services to users in China. Implement a tag management screen and a global personalisation switch, and record the state of the switch with the same rigour as cookie consent.

UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal Data

[215] · 2 January 2022 UNITED ARAB EMIRATES LEGISLATION CONSENT OTHER

The federal PDPL, effective 2 January 2022, requires consent that is clear, specific, informed and withdrawable unless another basis applies, and gives data subjects a right to object to processing for direct marketing and to automated decision-making, with the UAE Data Office as regulator. It applies to controllers in the UAE outside the financial free zones, which run their own regimes, and to foreign controllers processing UAE residents' data. Executive regulations that would set detailed consent mechanics and penalties have not been issued, so obligations are applied from the law's text. Run advertising cookies on opt-in consent and offer an objection route for profiling.

Personal Information Protection Law (PIPL), Articles 13, 14, 24 and 66

[216] · 1 November 2021 CHINA LEGISLATION CONSENT OPT OUT SIGNALS ENFORCEMENT SECONDARY SOURCE

Article 13 lists the lawful bases, with consent first and no legitimate-interest basis, and Article 14 requires consent given voluntarily and explicitly on the basis of full information, refreshed when purpose, method or categories change. Article 24 requires that information push or commercial marketing based on automated decision-making be accompanied by an option not targeted at personal characteristics or a convenient way to refuse, and Article 66 allows fines up to RMB 50 million or 5 percent of the prior year's turnover for serious violations. It binds handlers in China and foreign handlers targeting individuals in China. Offer a visible non-personalised mode and a one-step refusal of personalised advertising.

ACCC Digital advertising services inquiry, final report

[217] · 28 September 2021 AUSTRALIA REGULATOR GUIDANCE SALE SHARING CONSENT OTHER

The competition regulator's final report, released on 28 September 2021, found competition in ad tech ineffective because of opacity across the supply chain and the data advantage of the largest intermediary, and made six recommendations, including that the leading provider explain publicly how it uses first-party data in ad tech, sector-specific rules allowing data separation or access remedies, and transparency standards backed by mandatory rules if voluntary measures fail. It binds no one but frames how the ACCC assesses consent and data flows in advertising, complementing its 2019 platforms inquiry call for opt-in consent. Expect Australian regulators to read consent strings and data-sharing settings as competition evidence too.

Protection of Personal Information Act 4 of 2013 (POPIA), sections 11, 18, 69 and 107 to 109

[218] · 1 July 2021 SOUTH AFRICA LEGISLATION EMAIL MARKETING CONSENT ENFORCEMENT

POPIA commenced on 1 July 2020 with a grace period ending 30 June 2021. Section 11 requires a lawful basis such as consent or legitimate interest, section 18 requires notification of the purpose and source of collection, and section 69 prohibits direct marketing by electronic communication unless the data subject has consented or is an existing customer marketed with similar products, with an opt-out in every message; the Information Regulator may impose administrative fines of up to R10 million. The Act binds responsible parties domiciled in South Africa or using means there. Treat advertising cookies that feed electronic direct marketing as needing opt-in consent, and document legitimate-interest reliance for analytics.

Provisions on the Scope of Necessary Personal Information for Common Types of Mobile Apps

[219] · 1 May 2021 CHINA REGULATOR GUIDANCE STRICTLY NECESSARY CONSENT COOKIE WALLS

Issued on 12 March 2021 and effective from 1 May 2021, the provisions define for 39 common app types the personal information necessary for basic functions, from location for navigation to phone number for social platforms, and state that an app must not refuse basic services because a user declines to provide non-necessary personal information; news, browser and utility apps need no personal information for basic use. They bind app operators and are enforced through CAC and MIIT app checks. Map every SDK and tracker to the necessary-information list for the app's category and keep advertising and analytics collection strictly optional.

Personal Data Protection Act 2012, Parts 4 and 9A (consent, deemed consent by notification, legitimate interests, financial penalties)

[220] · 1 February 2021 SINGAPORE LEGISLATION CONSENT ANALYTICS EXEMPTION ENFORCEMENT

The Act requires consent, or deemed consent, before collecting, using or disclosing personal data, and the 2020 amendments in force from 1 February 2021 added deemed consent by notification, available only after an assessment shows no likely adverse effect and a reasonable opt-out period is given, and a legitimate interests exception that cannot be used for direct marketing. Financial penalties of up to 10 percent of annual turnover in Singapore or S$1 million, whichever is higher, apply from 1 October 2022. It binds organisations processing data in Singapore. Use deemed consent by notification only for low-risk cookies with a documented assessment, and obtain express consent for behavioural advertising.

PDPC Advisory Guidelines on the PDPA for Selected Topics, chapter on online activities (cookies and behavioural targeting)

[221] · 1 February 2021 SINGAPORE REGULATOR GUIDANCE CONSENT STRICTLY NECESSARY ANALYTICS EXEMPTION

The Commission's guidelines state that consent is not required for cookies needed to provide the service the user requested, that deemed consent may cover other cookies where the user voluntarily provides data with knowledge of the purpose, that behavioural targeting using personal data requires consent with a clear explanation of the purpose, and that IP addresses and device identifiers are personal data when they can identify an individual alone or with other data. They bind no one directly but state how the Commission assesses complaints. Classify each cookie as necessary, deemed-consent or express-consent, keep a written justification, and present advertising cookies as an opt-in choice.

GB/T 35273-2020, Information security technology: Personal information security specification

[222] · 1 October 2020 CHINA STANDARD CONSENT OPT OUT SIGNALS OTHER

The recommended national standard, published on 6 March 2020 and implemented on 1 October 2020, sets the detailed practice that regulators and app stores use to assess personal information handling: separate consent for each business function, no bundling of functions, personalised display marked as such with a way to opt out, restraints on third-party SDK data collection with contractual and technical controls, and privacy policy templates. It is voluntary in form but is the reference in CAC, MIIT and TC260 app assessments. Audit every embedded SDK against the standard's third-party access clauses and label personalised advertising content as required.

Measures for Determining Illegal Collection and Use of Personal Information by Apps (App违法违规收集使用个人信息行为认定方法)

[223] · 28 November 2019 CHINA REGULATOR GUIDANCE CONSENT DARK PATTERNS ENFORCEMENT

Issued jointly by the CAC, MIIT, Ministry of Public Security and SAMR, the measures list six categories of violation used in app enforcement: no privacy policy or one not shown at first launch or reachable within four clicks, unclear purpose, method and scope, collection before or after refusal of consent including default consent and inducement, collection of unnecessary data or refusal of service when non-essential data is declined, unauthorised sharing with third parties through embedded code or servers, and missing deletion, correction and complaint channels. They bind app operators in China and drive the CAC's periodic public naming of apps. Test the app against each category before release.

Kenya Data Protection Act 2019 and Data Protection (General) Regulations 2021 (direct marketing)

[224] · 25 November 2019 KENYA LEGISLATION CONSENT EMAIL MARKETING

The Act, in force from 25 November 2019, requires a lawful basis including consent that is express, unequivocal, free, specific and informed, and the General Regulations of 2021 permit direct marketing only with consent or to existing customers who have not opted out, and require the opt out route to be visible, easy and free of charge. The Office of the Data Protection Commissioner enforces with penalties of up to KES 5 million or 1 percent of annual turnover, whichever is lower, and has issued determinations against operators for unsolicited marketing. It binds controllers in Kenya and those processing Kenyan residents' data. Treat advertising cookies as consent-based and honour marketing opt-outs across channels.

Lei Geral de Proteção de Dados Pessoais (Law 13.709/2018), Articles 7, 8 and 52

[225] · 14 August 2018 BRAZIL LEGISLATION CONSENT ENFORCEMENT

Article 7 lists ten legal bases, including consent (item I) and legitimate interest (item IX), and Article 8 requires consent in writing or by another means demonstrating the data subject's will, in a highlighted clause when written, with the burden of proof on the controller and revocation available at any time. Article 52 allows fines of up to 2 percent of revenue in Brazil, capped at R$50,000,000 per infraction, plus daily fines, publication and blocking. It binds any processing of data of individuals located in Brazil or carried out in Brazil. Pair each cookie category with a legal basis, record consent events, and keep refusal as easy as acceptance.

OPC, OIPC Alberta and OIPC British Columbia, Guidelines for obtaining meaningful consent

[226] · 24 May 2018 CANADA REGULATOR GUIDANCE CONSENT DARK PATTERNS

The three commissioners set seven principles for consent that is meaningful under PIPEDA and the Alberta and British Columbia PIPAs: emphasise key elements, let individuals control the level of detail, offer clear yes or no options for non-essential collection, be innovative, consider the consumer perspective, make consent dynamic, and be accountable. Express consent is required for sensitive information, for uses outside reasonable expectations, and where a meaningful residual risk of significant harm remains. The guidelines have been applied by the offices since 1 January 2019. Build layered notices and just-in-time prompts into consent flows, and keep records that demonstrate the process meets each principle.

Cybersecurity Law, Article 22 and Article 41

[227] · 1 June 2017 CHINA LEGISLATION CONSENT OTHER SECONDARY SOURCE

Article 22 requires providers of network products and services with functions that collect user information to tell users and obtain their consent, and Article 41 requires network operators to collect and use personal information lawfully, properly and only as necessary, to publish their collection and use rules, to state purpose, method and scope, and to obtain consent. The law, in force since 1 June 2017, binds network operators in China and is the basis on which the Cyberspace Administration inspects apps and websites for undisclosed collection. Keep a published collection rule for every site and SDK and make sure the banner text matches the collection actually performed.

PIPC and KCC Guideline on personal information protection in online customised advertising (behavioural information)

[228] · 7 February 2017 SOUTH KOREA REGULATOR GUIDANCE CONSENT OPT OUT SIGNALS CHILDREN

The guideline, issued by the KCC on 7 February 2017 and moved to the PIPC on 5 August 2020, treats online behavioural information as protected data, requires advertising businesses and the media operators hosting them to disclose the items collected, the collection method, the purpose and how users can exercise control, prohibits generating or using sensitive information from behavioural data without consent, bans collecting behavioural information for advertising from services whose main users are children under 14, and requires an easy control, with a direct control on the advert itself for third-party advertising. It is guidance and binds no one directly, but the Commission applied its standard in the September 2022 sanctions against Google and Meta. In January 2024 the Commission announced a policy plan to revise it. Publish a behavioural information notice and an opt-out that works across advertising partners.

Colombia Statutory Law 1581 of 2012 and Decree 1377 of 2013 (prior, express and informed authorisation)

[229] · 17 October 2012 COLOMBIA LEGISLATION CONSENT ENFORCEMENT

Law 1581 requires prior, express and informed authorisation from the data subject before personal data is collected, and Decree 1377 allows that authorisation to be given by unequivocal conduct but never by silence, with the controller bearing the burden of proof. The Superintendencia de Industria y Comercio enforces the law and has sanctioned operators for collecting data through websites without valid authorisation, with fines of up to 2,000 monthly minimum wages. It binds controllers in Colombia and foreign controllers subject to Colombian law by treaty. Use an affirmative consent action for non-essential cookies, record the authorisation, and publish the treatment policy the law requires.

Philippines Data Privacy Act of 2012 (Republic Act 10173) and NPC guidelines on consent

[230] · 15 August 2012 PHILIPPINES LEGISLATION CONSENT DARK PATTERNS

The Act defines consent as a freely given, specific, informed indication of will evidenced by written, electronic or recorded means, requires a privacy notice before collection, and its implementing rules give data subjects a right to object to processing for direct marketing and profiling. The National Privacy Commission's guidelines on consent state that consent may not be bundled, that non-response or implied consent is not consent, and that withdrawal must be as easy as giving it, and the Commission has ordered operators to fix non-compliant consent interfaces. It binds controllers in the Philippines and those processing Filipino residents' data. Use an affirmative cookie consent action and an accessible withdrawal control.

OPC Guidelines on privacy and online behavioural advertising

[231] · 6 December 2011 CANADA REGULATOR GUIDANCE CONSENT CHILDREN OTHER

The Commissioner accepts opt-out consent for online behavioural advertising under PIPEDA only where the practice is explained clearly and outside the privacy policy, the opt-out is offered at or before collection, takes effect immediately and persists, no sensitive information is used, children and child-directed sites are not tracked, and data is destroyed or de-identified promptly. Tracking that a user cannot decline, such as zombie cookies or device fingerprinting, must not be used for advertising. It applies to any organisation tracking Canadian users across sites. Configure banners and ad-preference tools to meet each condition, and treat opt-in as required where a condition cannot be met.

Argentina Personal Data Protection Law 25.326, Articles 5, 6 and 27

[232] · 4 October 2000 ARGENTINA LEGISLATION CONSENT OPT OUT SIGNALS

Law 25.326 requires free, express and informed consent, in writing or by an equivalent means, before personal data is processed unless an exception applies (Article 5), requires notice of purpose and recipients (Article 6), and lets any person ask at any time for the removal or blocking of their name from advertising databases, with access to those records free of charge (Article 27). The Agency of Access to Public Information enforces it with fines that remain low under the current scale; a replacement bill with turnover-based fines has been pending since 2023. It binds controllers in Argentina and those using means there. Present advertising cookies as opt-in and provide a no-cost objection route for marketing profiles.

Standards and frameworks

29 documents, newest first.

California AB 566, the Opt Me Out Act (browser opt-out preference signal)

[233] · 1 January 2027 CALIFORNIA LEGISLATION APPLIES FROM A FUTURE DATE OPT OUT SIGNALS BROWSER SIGNALS

AB 566, signed on 8 October 2025, amends the CCPA to require a business that develops or maintains a web browser to include a setting that lets a consumer send an opt-out preference signal to businesses the consumer interacts with through the browser, easy to locate and configure, with an explanation of how the signal works and its intended effect. It operates from 1 January 2027, with a safe harbour for compliant browser makers when a website fails to honour the signal, and the California Privacy Protection Agency may adopt regulations. It binds browser developers; businesses already must honour such signals under the CCPA regulations, so expect more signals from 2027.

W3C Global Privacy Control (GPC) specification, Working Draft

[234] · 24 September 2026 STANDARDS STANDARD PROPOSED OPT OUT SIGNALS BROWSER SIGNALS

The Global Privacy Control specification, a W3C Working Draft of 24 September 2026 from the Privacy Working Group (First Public Working Draft 21 November 2024), defines a Sec-GPC request header with the value 1, a navigator.globalPrivacyControl boolean, and an optional /.well-known/gpc.json resource by which a site declares that it honours the signal. The signal expresses a request not to sell or share personal data and has legal effect only where a law gives it one; the draft notes that at least four US states recognise it. A draft is not law; read the header and the DOM property and treat them as opt-out requests wherever a state law applies.

IAB Multi-State Privacy Agreement (MSPA), Fifth Amended and Restated

[235] · 4 June 2026 UNITED STATES (FEDERAL) STANDARD SALE SHARING OPT OUT SIGNALS

The MSPA is a springing contract among signatories that governs personal information flows for selecting and delivering digital advertising under US state privacy laws; the Fifth Amended and Restated version took effect on 4 June 2026, after a March 2026 revision prompted by California's Healthline and Honda enforcement actions. First parties must now process under the US National Approach, an earlier state-specific approach surviving only for signatories from before 2026 until 31 December 2026, and downstream participants must read and honour signals and verify that counterparties are signatories. The National Approach means treating every user as a resident of all covered states. It is a private contract, not law; publishers using it work with the GPP US National string.

IAB Europe TCF Policies (current version 2026-05-29.5.0.b)

[236] · 29 May 2026 STANDARDS STANDARD TCF CONSENT

The TCF Policies are the contractual rulebook behind the TC String, defining purposes, features and legal bases and setting CMP, vendor and publisher obligations. CMPs must generate consent signals only on a clear affirmative action, resolve conflicting signals before transmission, implement publisher restrictions and resurface the interface when IAB Europe notifies material policy changes; vendors must respect signals in real time and stop processing if a signal cannot be verified; publishers may use only compliant CMPs and vendors. The Policies bind registered participants by contract and are not law, although the Belgian APD and the Brussels Market Court examined earlier versions; check which version your CMP implements.

Brussels Market Court judgment of 7 January 2026 annulling the TCF action plan validation

[237] · 7 January 2026 BELGIUM COURT DECISION TCF ENFORCEMENT

The Market Court annulled the APD decision of 11 January 2023 validating IAB Europe's TCF action plan, finding that the APD had built on a decision already found unlawful, had assumed a joint controllership extending to downstream OpenRTB processing that the May 2025 judgment rejected, and had not heard IAB Europe on the intervening CJEU developments. The APD must reassess the plan on the narrower TC String scope after giving IAB Europe the opportunity to take position. The action plan measures already built into TCF v2.2 (consent only for advertising purposes, clearer disclosures, vendor transparency) stay in place, and the 1 March 2026 TCF v2.3 deadline was unaffected.

European Commission acceptance of Meta's DMA commitments on personalised advertising choice

[238] · 8 December 2025 EU ENFORCEMENT CONSENT OR PAY PIXELS WIRETAP ENFORCEMENT

On 8 December 2025 the European Commission announced Meta's commitment under the Digital Markets Act to give EU users of Facebook and Instagram, from January 2026, a choice between sharing all their data for fully personalised advertising and sharing limited data for an experience with more limited personalised advertising, following the Commission's April 2025 non-compliance decision on the earlier consent-or-pay model. The commitment binds Meta and changes what signals its advertising systems hold for EU users. Advertisers running the Meta Pixel and Conversions API remain responsible for their own website consent under the ePrivacy rules and the GDPR, and should verify that pixel events fire only after that consent.

Google Privacy Sandbox: update on plans for Privacy Sandbox technologies (API retirement)

[239] · 17 October 2025 STANDARDS STANDARD BROWSER SIGNALS OTHER

On 17 October 2025 Google announced the retirement of thirteen Privacy Sandbox technologies, including the Topics API, Protected Audience, Attribution Reporting, Private Aggregation and Shared Storage, SelectURL, Related Website Sets, IP Protection, On-Device Personalization, Protected App Signals and the SDK Runtime, to be phased out through the normal Chrome and Android processes without fixed dates. CHIPS and FedCM continue, and Google will pursue an interoperable attribution standard at the W3C. Google keeps its current approach to third-party cookie choice in Chrome. It is a vendor announcement, not law; remove Sandbox-specific purposes from consent flows once the APIs stop shipping.

BfDI recognition of consent management services under section 26 TDDDG

[240] · 17 October 2025 GERMANY REGULATOR GUIDANCE CONSENT BROWSER SIGNALS

The BfDI runs the recognition procedure under section 26 TDDDG and sections 10 to 13 EinwV: it reviews an application, sends a draft decision to the applicant and the Land supervisory authorities with four weeks for comments, requires a security concept and independence from companies with a financial interest in consent data, and keeps a public register. The first recognition, of the service Consenter operated by Law & Innovation Technology GmbH, was granted on 17 October 2025. Recognition means the service meets the ordinance, not that any consent it stores is valid for a given site; German publishers should decide how to treat its signals alongside their own banner.

IAB Europe TCF v2.3 and the mandatory disclosed vendors segment

[241] · 19 June 2025 STANDARDS STANDARD TCF CONSENT

TCF v2.3, released on 19 June 2025, makes the disclosedVendors segment of the TC String mandatory so that a vendor can tell whether it was disclosed to the user, resolving earlier ambiguity in legitimate interest signalling. CMPs had to update by 28 February 2026 without re-surfacing the interface; vendors must read and act on the segment from 1 March 2026, after which a new TC String without it is invalid. TC Strings created before the deadline remain valid until users refresh their choices. The change binds TCF-registered CMPs and vendors by contract, not law; confirm that your CMP's TC Strings carry the segment and that each vendor's ID bit is set.

Microsoft Advertising consent mode requirement for UET

[242] · 5 May 2025 STANDARDS STANDARD CONSENT MODE PIXELS WIRETAP

Microsoft Advertising announced on 31 March 2025 that from 5 May 2025 advertisers must pass user consent signals for site visits from the EEA, the UK and Switzerland, through consent mode on the Universal Event Tracking tag or Microsoft pixels (an ad_storage parameter set to granted or denied), through the IAB TCF, or through a tag manager integration. Without a signal, advertising performance for those visitors is affected because the data is not used for optimisation. It is a platform requirement, not law; map the CMP's advertising category to ad_storage so that the tag fires only after consent.

Google Privacy Sandbox: next steps for Privacy Sandbox and tracking protections in Chrome

[243] · 22 April 2025 STANDARDS STANDARD BROWSER SIGNALS OTHER

On 22 April 2025 Google confirmed that Chrome will not roll out a new standalone prompt for third-party cookies; users keep the existing choice in Chrome's Privacy and Security settings, and Incognito continues to block third-party cookies by default. Google also committed to launch IP Protection in Incognito in the third quarter of 2025 and to publish an updated roadmap for the Sandbox APIs. It is a vendor decision, not law. Third-party cookies therefore remain readable in Chrome for most users, and the consent banner remains the operative control over them under the ePrivacy rules.

Global Privacy Control reference site and adoption record (globalprivacycontrol.org)

[244] · 15 January 2025 STANDARDS STANDARD OPT OUT SIGNALS BROWSER SIGNALS SECONDARY SOURCE

The GPC reference site records the signal's origin and adoption: native support in Brave, DuckDuckGo and Firefox and in browser extensions, adoption as a W3C Privacy Working Group work item in November 2024, and, as of 15 January 2025, guidance from California, Colorado, Connecticut and New Jersey treating GPC as a binding opt-out, with eight further state laws permitting opt-outs through universal mechanisms. It cites the California CCPA regulations' requirement to honour user-enabled global privacy controls. The site is maintained by the signal's proponents and is not law. Use it to track which browsers send the signal and which states enforce it.

Connecticut Attorney General advisory on opt-out preference signals

[245] · 30 December 2024 CONNECTICUT REGULATOR GUIDANCE OPT OUT SIGNALS BROWSER SIGNALS ENFORCEMENT

The Connecticut Attorney General advised that from 1 January 2025 controllers under the Connecticut Data Privacy Act must treat browser-based opt-out preference signals, in practice Global Privacy Control, as binding opt-out requests for the sale of personal data and targeted advertising, including where the signal conflicts with an earlier choice or loyalty programme membership. Entities such as HIPAA-regulated healthcare providers are exempt. The advisory summarises statutory duties; the statute is what binds. Implement GPC recognition, document it in the privacy notice, and expect scrutiny: Connecticut, California and Colorado announced a joint investigative privacy sweep in 2025.

Google EU user consent policy

[246] · 31 July 2024 STANDARDS STANDARD CONSENT CONSENT MODE

Google's EU user consent policy requires anyone using Google advertising products with end users in the EEA, the UK and Switzerland (Switzerland added on 31 July 2024) to obtain legally valid consent for cookies or other local storage where legally required and for the use of personal data for ad personalisation, to identify every party receiving data, to keep consent records and to tell users how to revoke. Publishers must use a Google-certified CMP and advertisers with EEA traffic must send verified consent signals through TCF or consent mode. It is a contractual policy, not law, but it tracks the ePrivacy Directive and GDPR consent tests.

Google Privacy Sandbox: a new path for Privacy Sandbox on the web (third-party cookie reversal)

[247] · 22 July 2024 STANDARDS STANDARD SUPERSEDED BROWSER SIGNALS OTHER

On 22 July 2024 Google abandoned its plan to deprecate third-party cookies in Chrome and said it would instead introduce a browser-level choice that users could adjust at any time, after consultation with the UK Competition and Markets Authority and the Information Commissioner's Office. It committed to keep investing in the Privacy Sandbox APIs and to add IP Protection to Incognito. The post is a vendor announcement with no legal force, but it ended the assumption that consent for third-party cookies would become moot. Superseded by the 22 April 2025 decision not to introduce a standalone prompt and the 17 October 2025 retirement of most Sandbox APIs.

Google consent mode v2 requirement for EEA traffic

[248] · 1 March 2024 STANDARDS STANDARD CONSENT MODE CONSENT

Consent mode v2 adds the ad_user_data and ad_personalization parameters to ad_storage and analytics_storage, and Google requires the signals for EEA traffic under its EU user consent policy: from early March 2024 only end users outside the EEA are included in audiences shared with linked advertising products unless the signals are sent, and remarketing and personalisation features stop working for the affected traffic. Default states must be denied before the user acts and updated afterwards; basic mode holds tags until consent, advanced mode sends cookieless pings. It is a platform policy, not law; a CMP satisfies it by mapping its analytics category to analytics_storage and its advertising category to ad_storage, ad_user_data and ad_personalization, provided valid consent is collected where the law requires it and the tags actually respect the signals; the cookieless pings of advanced mode are a platform feature, not a legal exemption.

EDPB Website Auditing Tool

[249] · 29 January 2024 EU REGULATOR GUIDANCE ENFORCEMENT CONSENT

The EDPB Website Auditing Tool, released on 29 January 2024 under the EUPL 1.2 licence through the Support Pool of Experts, lets a data protection authority, controller or processor record a visit to a website and analyse the cookies, storage and third-party requests it triggers, with full-page screenshots, import and export of analyses and searchable databases. It is free and open source and available in English, French, German, Italian and Spanish. It is a tool rather than guidance, and the EDPB states that it does not represent an official EDPB position. Run it against your own sites before and after consent to see what a regulator would see.

Google certified CMP requirement for ads in the EEA, UK and Switzerland

[250] · 16 January 2024 STANDARDS STANDARD TCF CONSENT

From 16 January 2024 publishers serving personalised ads through AdSense, Ad Manager or AdMob to users in the EEA and UK must use a Google-certified CMP integrated with IAB Europe's TCF; Switzerland followed on 31 July 2024 and CTV inventory had an extension to July 2025. Traffic without a certified CMP is eligible only for non-personalised or limited ads. Certified CMPs must support Google's Additional Consent specification for non-TCF vendors, recertify annually and, since 4 October 2024, pass a check on TC String storage and retention (TCF policy check 30). Google states that certification does not check full TCF or legal compliance, so it is not a compliance opinion.

IAB CCPA Compliance Framework US Privacy String (deprecated)

[251] · 31 August 2023 STANDARDS STANDARD SUPERSEDED OPT OUT SIGNALS SALE SHARING

The US Privacy String of the IAB CCPA Compliance Framework encoded a single California do-not-sell choice for the advertising supply chain. IAB Tech Lab stopped maintaining it and set a deprecation date of 31 January 2024, extended from 30 September 2023, because only the Global Privacy Platform can carry the signals required by the Virginia, Colorado, Connecticut and Utah laws that took effect in 2023. It never had legal force. Superseded: replace any remaining usprivacy implementation with GPP section strings, and check that ad partners no longer read the old field as the source of truth.

IAB Europe Transparency and Consent Framework v2.2

[252] · 16 May 2023 STANDARDS STANDARD SUPERSEDED TCF CONSENT

TCF v2.2 launched on 16 May 2023 and removed legitimate interest as a legal basis for advertising and content personalisation purposes 3 to 6, replaced legal text with plain-language purpose descriptions, required vendors to declare data categories and retention periods, and obliged CMPs to show the total number of vendors on the first layer and to offer an easy route to withdrawal. It binds registered CMPs, vendors and publishers by contract, with switch-over required by 20 November 2023; it is an industry standard, not law, though the Belgian APD and the courts assessed its predecessor. TCF v2.3 of 19 June 2025 supersedes it by making the disclosed vendors segment mandatory.

IAB Tech Lab TCF v2 technical specifications and implementation guidelines

[253] · 16 May 2023 STANDARDS STANDARD TCF CONSENT

IAB Tech Lab maintains the TCF v2 technical specifications: the TC String format with its core, disclosed vendors and publisher TC segments, the CMP API through which vendors read signals, and the Global Vendor List (version 3 since v2.2). The implementation guidelines, last updated in May 2023, record the v2.2 changes (revised purpose names, retention periods, no legitimate interest for purposes 3 to 6, data categories, localised policy URLs) and the v2.3 mandatory disclosed vendor segment. They bind participants through the TCF Policies and are not law. Use them to test that your CMP exposes the API correctly and that TC Strings decode to the choices actually made.

IAB Europe TCF compliance programmes and CMP validation

[254] · 15 May 2023 STANDARDS STANDARD TCF ENFORCEMENT

IAB Europe validates every CMP before it receives a CMP ID and a place on the CMP List, covering the interface and technical operation on web, mobile and CTV, and vets vendors through a questionnaire before Global Vendor List listing. Live installations are monitored: TC String tampering brings immediate suspension of at least four weeks and permanent suspension on a fourth offence within twelve months, and other policy breaches allow 10 business days (5 to 20 for vendors) to remedy before suspension. The programme binds registered participants by contract, not law. Run the public CMP Validator browser extension, available since May 2023, against your own deployments before an audit does.

IAB Tech Lab Global Privacy Platform (GPP) and the US National section

[255] · 28 September 2022 STANDARDS STANDARD OPT OUT SIGNALS SALE SHARING

The Global Privacy Platform is IAB Tech Lab's container for consent and opt-out signals across jurisdictions: the GPP string (specification 1.0 of 28 September 2022, CMP API 1.1 of June 2023) carries sections for IAB Europe TCF, IAB Canada TCF, the US National string (section ID 7, defined by the MSPA US National Technical Specification, version 2.0 in October 2024) and individual US state strings, and records whether a Global Privacy Control signal was received. It is a technical standard adopted by contract and by ad exchanges, not law. Publishers selling programmatic inventory to US or Canadian audiences should emit GPP in place of the deprecated US Privacy String.

Mozilla Firefox Total Cookie Protection by default and Global Privacy Control setting

[256] · 14 June 2022 STANDARDS STANDARD BROWSER SIGNALS OPT OUT SIGNALS

Firefox has shipped Total Cookie Protection to all desktop users by default since 14 June 2022, confining each site's cookies to a separate jar so that third-party cookies cannot follow users across sites, on top of the list-based Enhanced Tracking Protection introduced in 2018. Global Privacy Control has been available since Firefox 120 as an opt-in setting labelled 'Tell websites not to sell or share my data'; Mozilla notes that some websites may ignore it. These are browser defaults, not law. A banner cannot assume a Firefox third-party cookie is readable, and Firefox visitors sending GPC must be handled as opt-outs wherever a law recognises the signal.

Apple App Tracking Transparency requirement (iOS 14.5)

[257] · 26 April 2021 STANDARDS STANDARD CONSENT BROWSER SIGNALS

Since 26 April 2021, with iOS 14.5, iPadOS 14.5 and tvOS 14.5, apps must ask permission through the AppTrackingTransparency framework before tracking users or reading the advertising identifier; without permission the IDFA is all zeros and tracking is prohibited. Tracking means linking app data with data from other companies' apps, websites or offline properties for targeted advertising or measurement, or sharing it with data brokers; on-device linking and fraud prevention are excluded. App Store Review Guideline 5.1.2(i) forbids gating functionality or offering incentives to obtain the permission. It is a platform rule, not law, and a separate consent under the ePrivacy rules may still be needed.

Brave Shields default blocking and Global Privacy Control on by default

[258] · 7 October 2020 STANDARDS STANDARD BROWSER SIGNALS OPT OUT SIGNALS

Brave Shields blocks third-party ads, trackers and cross-site cookies on every page by default, using EasyList, EasyPrivacy, uBlock Origin and Brave's own filter lists, and randomises the browser fingerprint. Brave announced Global Privacy Control on 7 October 2020, first in the Nightly desktop channel and the Android beta, and the signal is on by default in every version that implements it, described as a way for users to assert legal privacy rights, with an option to turn it off. These are browser defaults, not law. A business that receives Sec-GPC: 1 from a Brave visitor in a state that recognises the signal must treat it as an opt-out of sale, sharing and targeted advertising.

ISO/IEC 29184:2020 Online privacy notices and consent

[259] · 2 June 2020 STANDARDS STANDARD CONSENT OTHER

ISO/IEC 29184:2020, published on 2 June 2020 (edition 1, 25 pages, reviewed and confirmed in 2026), specifies controls for the content and structure of online privacy notices and for the process of obtaining, recording and withdrawing consent when personally identifiable information is collected. It is a voluntary standard: it binds no one unless adopted by contract or certification, and it does not replace the GDPR Article 7 conditions or national cookie rules. Use it as a checklist for layered notices and for the record a CMP should keep about each consent, including what the user was shown and when.

Apple WebKit Intelligent Tracking Prevention and full third-party cookie blocking

[260] · 24 March 2020 STANDARDS STANDARD BROWSER SIGNALS OTHER

Safari 13.1 and iOS and iPadOS 13.4 completed Intelligent Tracking Prevention by blocking all cross-site cookies by default, with the Storage Access API as the only exception, and by deleting all script-writable storage (cookies, IndexedDB, LocalStorage, service worker caches) after seven days without user interaction. WebKit's tracking prevention page adds that cookies set through CNAME or IP-address cloaking are capped at seven days and JavaScript cookies on landing pages reached through link decoration at 24 hours. These are engine defaults, not law. Measurement that relies on script-written first-party storage in Safari loses returning users after seven days of Safari use without interaction, whatever consent was recorded; cookies set by the server in an HTTP response are not capped unless they arrive through CNAME or IP-address cloaking.

W3C Tracking Preference Expression (Do Not Track), Working Group Note

[261] · 17 January 2019 STANDARDS STANDARD WITHDRAWN BROWSER SIGNALS OPT OUT SIGNALS

Tracking Preference Expression, published as a W3C Working Group Note on 17 January 2019, defined a DNT request header whose value 1 expressed a preference not to be tracked. The Tracking Protection Working Group closed because there had not been sufficient deployment to justify further advancement and no indication of planned support among user agents, third parties and the wider ecosystem. The header still exists in some browsers but has no defined legal effect and no cookie law requires sites to honour it. Withdrawn as a standard; Global Privacy Control (W3C Working Draft) is its successor for opt-out signalling, so do not build banner logic on DNT.

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